

PUBLICATIONS DE LA COUR PERMANENTE DE JUSTICE
INTERNATIONALE

SÉRIE B — N° 14

Le 8 décembre 1927

RECUEIL DES AVIS CONSULTATIFS

COMPÉTENCE DE LA COMMISSION
EUROPÉENNE DU DANUBE
ENTRE GALATZ ET BRAÏLA

PUBLICATIONS OF THE PERMANENT COURT
OF INTERNATIONAL JUSTICE.

SERIES B.—No. 14

December 8th, 1927

COLLECTION OF ADVISORY OPINIONS

JURISDICTION OF THE EUROPEAN
COMMISSION OF THE DANUBE
BETWEEN GALATZ AND BRAÏLA

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1927



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PUBLISHING COMPANY
1927

PERMANENT COURT OF INTERNATIONAL JUSTICE.

TWELFTH (ORDINARY) SESSION.

1927.
December 8th.
File F. b. XVI.
Docket XII: 1.

Present :

MM. HUBER, <i>President</i> ,	
LODER, <i>Former President</i> ,	
Lord FINLAY,	}
MM. NYHOLM,	
MOORE,	
ALTAMIRA,	
ODA,	
ANZILOTTI,	}
BEICHMANN,	
NEGULESCO,	

Judges,

Deputy-Judges.

ADVISORY OPINION No. 14.

JURISDICTION OF THE EUROPEAN
COMMISSION OF THE DANUBE
BETWEEN GALATZ AND BRAILA.

On December 9th, 1926, the Council of the League of Nations adopted the following Resolution :

"The Council,

having considered the letter dated September 25th, 1926, from the Chairman of the Advisory and Technical Committee for Communications and Transit, forwarding to the Secretary-General for submission to the Council the text of an Agreement made on September 18th, 1926, between the Governments of France, Great Britain, Italy and Roumania, whereby the said Governments request the Council to submit certain questions to the Permanent Court of International Justice for an opinion,

and having approved the said request,

has the honour to ask the Permanent Court of International Justice to give an advisory opinion on the questions formulated in the said Agreement which are as follows :

(1) Under the law at present in force, has the European Commission of the Danube the same powers on the maritime sector of the Danube from Galatz to Braila as on the sector below Galatz ? If it has not the same powers, does it possess powers of any kind ? If so, what are these powers ? How far upstream do they extend ?

(2) Should the European Commission of the Danube possess either the same powers on the Galatz-Braila sector as on the sector below Galatz, or certain powers, do these powers extend over one or more zones, territorially defined and corresponding to all or part of the navigable channel to the exclusion of other zones territorially defined, and corresponding to harbour zones subject to the exclusive competence of the Roumanian authorities ? If so, according to what criteria shall the line of demarcation be fixed as between territorial zones placed under the competence of the European Commission and zones placed under the competence of the Roumanian authorities ? If the contrary is the case, on what non-territorial basis is the exact dividing line between the respective competence of the European Commission of the Danube and of the Roumanian authorities to be fixed ?

(3) Should the reply given in (1) be to the effect that the European Commission either has no powers in the Galatz-Braila sector, or has not in that sector the same powers as in the sector below Galatz, at what exact point shall the line of demarcation between the two régimes be fixed ?

The aforementioned Governments are invited to afford the Court all the assistance which it may require in the consideration of the questions hereby submitted.

The Council authorizes the Secretary-General to present the present Request to the Court, together with the letter from the Chairman of the Advisory and Technical Committee for Communications and Transit, the text of the Agreement between the Governments and all other relevant documents, to give any assistance required in the examination of the questions and, if necessary, to take steps to be represented before the Court."

In pursuance of this Resolution, the Secretary-General of the League of Nations, on December 18th, 1926, submitted to the Court a Request for an advisory opinion in the following terms:

“The Secretary-General of the League of Nations, in pursuance of the Council Resolution of December 9th, 1926, and in virtue of the authorization given by the Council, has the honour to submit to the Permanent Court of International Justice an application requesting the Court, in accordance with Article 14 of the Covenant, to give an advisory opinion to the Council on the questions which are referred to the Court by the Resolution of December 9th, 1926.

The Secretary-General will be prepared to furnish any assistance which the Court may require in the examination of this matter, and will, if necessary, arrange to be represented before the Court.”

The Agreement mentioned in the Council Resolution as transmitted to the Registrar of the Court, is given below:

[*Translation.*]

“The undersigned M. CHARLES-ROUX, Mr. BALDWIN, M. ROSSETTI and M. CONTZESCO, representatives of France, Great Britain, Italy and Roumania, duly authorized by their Governments, have noted that difficulties have arisen between France, Great Britain and Italy on the one hand, and Roumania on the other, in connection with the competence of the European Commission of the Danube, and that the British Government has been of opinion that these difficulties constitute a dispute bearing upon the application of Articles 346, 348 and 349 of the Treaty of Versailles, and has laid the matter before the Advisory and Technical Committee for Communications and Transit of the League of Nations by a letter dated September 6th, 1924, according to the procedure provided for in Article 7 of the Rules for Organization adopted at Barcelona on April 6th, 1921, and basing its action on Article 376 of the Treaty of Versailles, and on the Resolution of the Assembly of the League of Nations dated December 19th, 1920, and that the Governments of France and Italy have associated themselves with Great Britain in this procedure. They have noted, on the other hand, that the Roumanian Government has disputed the fact that these difficulties constitute a dispute which could bring into operation the said procedure and has denied the competence of the Advisory and Technical Committee as laid down in the above-mentioned texts, but has made no objection to an examination of the difficulties which have

arisen or to any attempt at conciliation through the Advisory Committee.

The report of the Special Committee which was instructed by the Advisory and Technical Committee to examine the question has been laid before the undersigned Representatives in accordance with a Resolution of the Advisory and Technical Committee, dated July 28th, 1925.

They are desirous of removing the difficulties which have arisen between their Governments.

Accordingly, in view of Part X of the said Report, and without prejudice to the negotiations at present proceeding between them for that purpose,

the undersigned Representatives agree to the following :

Single Article.

The Governments of France, Great Britain, Italy and Roumania request the Council of the League of Nations to submit the following three questions to the Permanent Court of International Justice for an opinion :

(1) Under the law at present in force, has the European Commission of the Danube the same powers on the maritime sector of the Danube from Galatz to Braila as on the sector below Galatz ? If it has not the same powers, does it possess powers of any kind ? If so, what are these powers ? How far upstream do they extend ?

(2) Should the European Commission of the Danube possess either the same powers on the Galatz-Braila sector as on the sector below Galatz, or certain powers, do those powers extend over one or more zones, territorially defined and corresponding to all or part of the navigable channel to the exclusion of other zones territorially defined, and corresponding to harbour zones subject to the exclusive competence of the Roumanian authorities ? If so, according to what criteria shall the line of demarcation be fixed as between territorial zones placed under the competence of the European Commission and zones placed under the competence of the Roumanian authorities ? If the contrary is the case, on what non-territorial basis is the exact dividing line between the respective competences of the European Commission of the Danube and of the Roumanian authorities to be fixed ?

(3) Should the reply given to (1) be to the effect that the European Commission either has no powers in the Galatz-Braila sector, or has not in that sector the same powers as in the sector below Galatz, at what exact point shall the line of demarcation between the two régimes be fixed ?”

In conformity with Article 73, paragraph 1, of the Rules of Court, the Request was communicated to Members of the League of Nations and to States entitled to appear before the Court. At the same time, the Registrar sent to the British, French, Italian and Roumanian Governments, being regarded as the Governments of States likely—in accordance with the terms of Article 73, paragraph 2, of the Rules—to be able to furnish information on the questions upon which the Court's opinion was asked, a special and direct communication to the effect that the Court was prepared to receive from them written statements and, if necessary, to hear oral statements made on their behalf at a public hearing to be held for the purpose.

The time for the submission of any written statements, which was first fixed to expire on March 6th, 1927, was subsequently extended, at the request of the interested Governments, until April 12th, 1927. On that date, Memorials had been filed by the British, French and Roumanian Governments.

The British Government having, on receipt of these documents, asked permission to present a Reply to the Roumanian Government's Memorial, this request was granted, and at the same time the other Governments were informed that they also might submit replies. The time allowed for the submission of replies was fixed to expire on May 31st, 1927. At the request of the Roumanian Government, this time was, however, successively extended, first until June 17th, then till August 1st, and lastly until September 15th, 1927, this latter date being regarded as final and absolute. Before the expiration of the time allowed, Replies or Counter-Memorials had been filed by the British, Italian and Roumanian Governments.

The Court, in the course of public sittings held on October 6th, 7th, 8th and 10th, 11th, 12th and 13th, 1927, heard oral arguments by Sir Douglas Hogg, Attorney-General, on behalf of Great Britain, Professor Basdevant, on behalf of France, and M. Rossetti, Minister plenipotentiary, on behalf of Italy; and by M. Contzesco, Minister plenipotentiary, Professor de Visscher, M. Politis, former Minister for Foreign Affairs of Greece, and M^e Millerand, former President of the French Republic, on behalf of Roumania.

In addition to the documents submitted by the interested Governments, the Court has had before it documents communicated by the Secretary-General of the League of Nations with the Council's Request for an opinion, and also additional documents and information collected by the Registry (see list in the Annex).

* * *

Before undertaking the examination of the questions set out in the Resolution of the Council of the League of Nations of December 9th, 1926, the Court considers that it should recall the circumstances in which the Council was led to ask for an advisory opinion on these questions.

*

Under the Treaty of Paris of March 30th, 1856, by which the European Commission of the Danube was established, the powers of the Commission extended over the river from its mouths in the Black Sea up to Isaktcha, and, in order to assure the work of the Commission, each of the contracting Powers had the right to station two light vessels of war at the mouths of the river. The powers of the European Commission, the mandate of which was, under the Treaty of 1856, to last only for two years, were successively extended by decisions of Conferences held in 1858 and 1866 at Paris and in 1871 in London, the last prolongation being for a period of twelve years. By the Treaty of Berlin of July 13th, 1878, the powers of the Commission were extended to Galatz, and it was expressly stipulated that the light men-of-war might ascend the river to that point. On March 10th, 1883, the Parties to the Treaty of Berlin signed at London a Treaty dealing with the entire internationalized Danube, including the so-called maritime Danube, and by Article 1 of this Treaty the jurisdiction of the European Commission was extended from Galatz to Braila. Roumania did not sign this Treaty, or take part in the Conference by which it was drawn up, the Conference having refused to admit her delegates except in a consultative capacity.

From that time dates the uncertain situation in regard to the powers of the European Commission of the Danube on the sector of the Danube between Galatz and Braila, which ultimately led to the request for the present Opinion.

Before the war of 1914-1918, nothing was done, once and for all, to clear up this situation; one merely applied a sort of unwritten *modus vivendi* which was based on the circumstances and which made it possible to reduce within more or less narrow limits the disadvantages resulting therefrom.

After the war, in spite of efforts made at the time of the Peace Conference to arrive at a definite and final solution of the question of the territorial extent of the authority of the European Commission, all that was done was to re-establish the situation which had developed before the war. The Treaty of Versailles, in fact, indicates as the point where the respective jurisdictions of the International Commission (of the upper or fluvial Danube), set up under the terms of that Treaty, and the European Commission (of the Lower or maritime Danube) meet, the point where the authority of the latter ceases, thus referring to the *status quo ante*. And the Statute of the Danube now in force, which was prepared in 1921 under the provisions of the Treaty of Versailles and the corresponding provisions of the other Peace Treaties, for its part fixes this point as the downstream limit of the authority of the International Commission, which limit the Statute places at Braila; but this provision is subject to a reserve in favour of the *status quo ante*.

The true meaning and effect of that reserve will be discussed by the Court later on, but it may be mentioned already in this connection that, during the Conference for the preparation of the said Statute, there was drawn up by the delegates who were at the same time members of the European Commission, a Protocol for the purpose of stating their interpretation of the provision in question. But this Protocol, which was annexed to the minutes of a meeting of the Conference, itself gave rise to differences of opinion both in regard to its value in law and to the construction to be placed upon it.

It was during this Conference, held at Paris in 1920 and 1921, that the question of the powers of the European Commission of the Danube between Galatz and Braila first materialized. A newly appointed Inspector of Navigation asked the European Commission, in November, 1920, for instructions as to what powers he could exercise in this sector. His request, however, seems to have received, as sole answer, a recommendation for the time being to abstain from exercising jurisdictional powers there.

A year later, the same question was once more raised before the Commission, as the result of a collision in the port of Galatz, in connection with which the Inspector of Navigation had exercised police and jurisdictional powers. According to the Roumanian delegate on the Commission, the action of the Inspector was unwarranted and contrary to the international agreements. The British, French and Italian delegates, whilst disputing this view, asked for the adjournment of the question in order that it might be subjected in the meantime to careful consideration. And the Commission only decided that, until the question of jurisdiction between Galatz and Braila was decided, ".... the Inspector of Navigation should take no action... but the Commission would reserve its rights by protesting whenever the Roumanian authorities took action"; it was also agreed "that by proceeding thus the final settlement of the matter would be in no way prejudiced".

The question was again adjourned in May, 1922, and was only taken up afresh in October of that year. On that occasion, the Roumanian delegate explained in detail his point of view. A discussion ensued, in the course of which the British delegate observed that three problems arose, in regard to (1) the situation of fact existing before the war between Galatz and Braila, (2) the possibility of separating in practice compulsory pilotage and jurisdiction, and (3) the downstream limit of the disputed Galatz-Braila sector. The Roumanian delegate, at the conclusion of the discussion, submitted a proposal for a provisional agreement to be concluded between the Roumanian Government and the European Commission, which proposal was subsequently to form the

basis of an attempt to draw up a *modus vivendi*, to be applied on the sector in question, pending a final settlement. It was, in fact, found possible to draw up a text, in which however the question of the point on the river where the full jurisdiction of the European Commission would begin (the point below Braila where the *modus vivendi* would cease to apply) was reserved; moreover, a difference of opinion soon arose between the Roumanian delegate and his colleagues as to the wording, in regard to an important point, of the text actually adopted. A compromise was ultimately reached in regard to the upstream limit of the jurisdiction of the European Commission; and the text thus completed was submitted to the Roumanian Government, as a proposed definitive arrangement.

That Government gave its reply in October, 1923. Meanwhile the Roumanian delegate had again raised the question of the limits of jurisdiction, but the Commission had decided to maintain its offer of 1922 as it stood. The Roumanian reply, though in principle favourable, nevertheless made Roumania's acceptance of the proposed arrangement conditional upon the fixing of an upstream limit other than that contemplated in the proposed arrangement. The attempt to reconcile the opposing views was wrecked on this shoal; the delegates of the other Powers reserved their reply, which was not even given at the session held by the Commission in October, 1924. On that occasion, on the contrary, they informed their Roumanian colleague that the question, which otherwise seemed insoluble, would be referred to the League of Nations.

In the course of the preceding month, in fact, the British Government—with which the French and Italian Governments soon associated themselves—, embarking on a new course, had presented to the Secretary-General of the League of Nations, on September 6th, 1924, a request to the effect that the following question should, in accordance with the relevant provisions of the international agreements in force, be submitted to the Advisory and Technical Committee for Communications and Transit of the League of Nations:

“The dispute which has arisen between Great Britain, France and Italy, on the one hand, and Roumania on the other, with regard to the application of Articles 346, 348 and 349 of the Treaty of Versailles as to the question of the limits of the jurisdiction of the European Commission of the Danube.”

The request, which relied on Article 376 of the Treaty of Versailles, on the Resolution of the Assembly of the League of Nations of December 9th, 1920, and on Article 7 of the Rules for the organization of the said Committee, was accompanied by an explanatory memorandum, which defined the difference of opinion in question as follows :

“The Roumanian Government, denying the claim of the Commission to apply its navigation regulations or to take cognizance of cases of their infraction in the navigable channel between Galatz and Braila, further contends that the jurisdiction of the Commission should cease at a point six and a half nautical miles below Galatz where the river Pruth joins the Danube. It declares that the authority of the Port Captain of Galatz extends to that point, and it has produced a plan on which the eventual extension of the port to the mouth of the Pruth is foreshadowed. It also lays down as a general principle that, where a port exists, both banks of the river and the intervening navigable channel must be considered to be within its limits. Neither the British, French, nor Italian Commissioners have accepted this point of view, and the Commission is unable to come to agreement on this matter.”

Article 376 of the Treaty of Versailles provides that disputes are to be settled “as provided by the League of Nations”. The Assembly Resolution of December 9th, 1920, entrusts the Advisory and Technical Committee with the task of “adjusting such disputes by conciliation between the Parties” before recourse is had to the Permanent Court of International Justice. Finally, Article 7 of the Rules of Organization of the Committee contains, amongst others, provisions to the following effect : Before proceeding with any enquiry, the Committee is to communicate with the governments concerned, forward to them the request and invite them to submit any observations which they consider suitable. If no satisfactory reply is received within the time fixed, the Advisory Committee may appoint a committee of enquiry with instructions to investigate the question and submit a report. When this report has been received and considered, the Advisory Committee, with a view to arriving at a settlement, will give a reasoned opinion which it will communicate to the Parties concerned.

The question which the British Government had brought to the notice of the Secretary-General of the League of Nations

was placed on the agenda of the session held by the Advisory and Technical Committee in November, 1924. At the first meeting, the President announced that "the Roumanian Government's definitive reply"—doubtless to a communication made to it in accordance with the above-mentioned provisions of the Rules of Organization—had not yet arrived, and that the Roumanian delegate was unable for reasons of health to be present at the meetings of the Committee, which in these circumstances decided to adjourn the question and to instruct the Bureau to appoint a committee of enquiry to examine it.

The Committee of Enquiry, which was in this case known as the "Special Committee for the question of the Jurisdiction of the European Commission of the Danube", was duly appointed. The Committee consisted of MM. Burckhardt, Chairman (Switzerland), Hostie (Belgium), and Kröller (Netherlands).

After having in the course of its first two sessions—held in February and in March-April, 1925—heard the question argued before it by the representatives of the interested Governments, the Special Committee proceeded in the early summer of 1925 to visit the locality, in order there to investigate the question which it had been asked to elucidate. The representatives of Roumania before the Committee always made their statements for information only, the Roumanian Government denying the very existence of a dispute between it and the other Governments represented on the European Commission, and also the jurisdiction of the organizations of the League to deal with the questions referred to.

During its visit to Roumania, the Committee consulted the records of the cases in which jurisdiction had been exercised upon the Lower Danube and in the ports of the maritime Danube by the agents of the European Commission and by the Roumanian authorities. It also visited the sector from Galatz to Sulina and went by boat from Galatz to Braila. Meantime, it heard the evidence of several officials and pilots of the European Commission, of the Roumanian Inspector-General of ports, of the captains of the ports of Galatz and Braila, of former captains of the port of Galatz, and of representatives of Roumanian circles interested in shipping on the Danube.

On the basis of all the data thus collected, the Committee, on July 2nd, 1925, submitted its report to the Advisory and Technical Committee. This report, the main portions of which are devoted to an historical study of the régime of the Lower Danube, and, above all, to a survey designed to establish what the legal position was at the time of the enquiry in regard to the questions forming the subject of the dispute referred to the Advisory Committee, concluded with a series of conciliation proposals.

The results of the historical and legal researches undertaken by the Special Committee may be summarized as follows: The provisions of the Definitive Statute of 1921—supplemented if necessary by the provisions of the Convention on the régime of navigable waterways of international concern adopted at Barcelona in the same year—suffice as a source for ascertaining the present legal position of the maritime Danube from the point of view of the powers of the European Commission. An examination of the Definitive Statute leads to the conclusion that the powers of the Commission are to be exercised from Galatz to above Braila, under the same *de facto* conditions as before the war. These conditions are not, in the opinion of the Committee, determined by the clause of the Treaty of London of 1883 extending the authority of the Commission to Braila, because that clause was not amongst those in force before 1914, but by usage having juridical force simply because it has grown up and been consistently applied with the unanimous consent of all the States concerned. Now, in the view of the Committee, the pre-war usage in the Galatz-Braila sector was that jurisdictional powers were exercised there by the European Commission. In this usage the Roumanian delegate tacitly but formally acquiesced, in the sense that a *modus vivendi* was observed on both sides according to which the sphere of action of the Commission in fact extended in all respects as far as above Braila. As regards the ports, the Committee considers that the dividing line between the jurisdiction of the national authorities and that of the international authority must be, not a definite territorial limit but a functional division.

In view of the conclusions at which the Committee had arrived

on the foregoing questions, it considered that the subsidiary question of the downstream limit of the port of Galatz did not arise.

The Advisory and Technical Committee considered the report of its Special Committee at the session held at Geneva in July, 1925. The report was criticized by the Roumanian representatives, who at the same time took objection to some of the "conciliation proposals" made by the Committee.

The Advisory and Technical Committee on this occasion adopted the following resolutions amongst others:

"II.—The Advisory and Technical Committee, having been apprised by a letter from the British Government dated September 6th, 1924, of the dispute concerning the jurisdiction of the European Commission of the Danube;

Having taken note of the report of the Special Committee appointed to examine this question;

Is of opinion that, as regards the question of competence raised by the Roumanian Government, it is neither necessary nor opportune, for the reasons set out in the above-mentioned report, for the Committee to give a decision on this point;

And, as regards the substantial issues involved, is of opinion:

(a) That, in conformity with the conclusions of the Committee's report, the jurisdiction of the European Commission of the Danube extends from Galatz to above Braila under the same conditions as from the sea to Galatz;

(b) That, consequently, the question of fixing a point below Galatz cannot be taken into consideration;

(c) That the distinction between the competence of the European Commission of the Danube and that of the Roumanian authority, which is exercised over the ports, cannot be drawn on the basis of a geographical boundary, but that it should be founded on the distinction which exists between questions of navigation and port questions, in accordance with the principles laid down in the Committee's report.

III.—The Advisory and Technical Committee for Communications and Transit;

Having taken note of the suggestions contained in the tenth part of the report of the Special Committee;

And considering that these suggestions, which have been framed with a view to conciliation, are in keeping with the conception which it has always entertained of the nature of its duties, and are calculated to ensure the fullest co-operation between the States concerned;

Invites the Governments Parties to the dispute to give their most favourable consideration to these suggestions, in case the Statute of the Danube should be partially revised ; and, in order to assist them in this examination, which it confidently expects will give satisfactory results, it authorizes the Chairman of the Advisory and Technical Committee to take steps, later on, if he thinks it desirable, for the convening of a meeting of the members of the Special Committee and of the delegates on the European Commission of the Danube."

Before the adoption of these resolutions, the Roumanian delegates, on behalf of their Government, had stated that in their opinion any resolutions adopted would not be binding upon Roumania. It should be observed in regard to this point that, according to the actual terms of the Special Committee's report, in the event of the failure of conciliation, Roumania's right, should she so desire, to bring the question of jurisdiction before the Permanent Court of International Justice, would remain intact.

In conformity with the last part of the resolution of the Advisory and Technical Committee, M. Burckhardt called together in conference the members of the Special Committee and those of the European Commission. Four sessions, the records of which are not before the Court, seem to have been held, the first in September, 1925, and the last in February, 1927. As a result of the first session, a report dated September 17th, 1925, was made to the Advisory and Technical Committee. This report provided for a further conference in the first quarter of 1926, at which date—it was considered—the result of certain direct negotiations between the Governments concerned might be submitted to the Committee. The report went on as follows :

"In order that the complicated negotiations which will be necessary may be carried on in an atmosphere of conciliation, it is, in the opinion of the Committee, very desirable that the four Governments should, at the beginning of the fresh exchange of views, in any case unanimously declare that, if they cannot come to an agreement regarding the conditions of revision, or if, for any reasons beyond their control, this revision does not take place within a certain time-limit, they are prepared to submit the dispute concerning which the Advisory and Technical Committee has pronounced its decision to the Permanent Court of International Justice. It would be understood that, if the Governments

agreed ultimately to submit this dispute to the Court, the present provisional régime would not be made a subject of discussion, pending the decision of the Court."

An account of the third conference between the Special Committee and the delegates of the European Commission has also been communicated to the Court in the form of a letter from the President of that Committee to the President of the Advisory and Technical Committee; the Court also has before it the text of certain statements made by the Roumanian delegate at this conference. M. Burckhardt's letter, dated September 25th, 1926, states that it was found impossible to agree on the texts prepared by the Committee, because the Roumanian delegate said that he was unable to accept these texts in their entirety. The letter continues as follows:

"After discussion, the representatives of France, Great Britain, Italy and Roumania on the European Commission of the Danube signed an Agreement requesting the Council to submit to the Permanent Court of International Justice, for an advisory opinion, the questions enumerated in that Agreement relative to the jurisdiction of the European Commission of the Danube."

The Agreement in question is that reproduced at the beginning of this Opinion.

M. Burckhardt in his letter also says that

"the British, French and Italian representatives, on the one hand, and the Roumanian representative on the other . . . have signed a Protocol . . . in which they make a statement as to the period within which the conciliation procedure, instituted in virtue of paragraph III of the resolution adopted by the Advisory and Technical Committee on July 30th, 1925, may be continued".

The essential passage of this Protocol is as follows:

"If, within a period of six months as from the date on which the Permanent Court of International Justice shall have given its opinion, the procedure of conciliation adopted in virtue of paragraph III of the Resolution of the Advisory and Technical Committee for Communications and Transit of the League of Nations dated July 30th, 1925, has led to no result, the procedure shall be considered as closed."

On the other hand, it appears from the statements of M. Contzesco, to which allusion has just been made, that the

course of obtaining an advisory opinion from the Court was only an alternative to a proposal for the bringing of the case before the Court "for judgment"; this proposal was rejected by the Roumanian delegate, whose Government had definitely refused to acknowledge the Court's jurisdiction. That Government could only go before that tribunal with the other Governments represented on the European Commission of the Danube—who appeared to it to have made up their minds in any case to bring the dispute before the Court—if the matter was submitted merely "for an advisory opinion", since

"notwithstanding the great respect due to an opinion" given by the Permanent Court, having regard to the special nature of the questions which would be submitted to it . . . an opinion of this kind could not, in so far as the Roumanian Government was concerned, have any other significance or legal effects".

When signing the Agreement to have recourse to the Court for an advisory opinion, the Roumanian delegate made certain conditions, one of which was as follows :

"That a fixed period should be agreed upon during which the negotiations should be regarded as in progress ; that once that time has expired, the Court's advisory opinion having been given and the negotiations having led to no result, the latter should be regarded as to all intents and purposes terminated, and the four Governments should reassume entire liberty of action."

The intention which, according to M. Contzesco's statement, had been manifested by the French, British and Italian delegates "in any case to bring the dispute before the Court" was subsequently confirmed by the British and French Governments, both in the Memorials submitted to the Court on their behalf and in the statements made before it orally by their representatives.

The President of the Advisory and Technical Committee transmitted, on September 25th, 1926, to the Secretary-General of the League of Nations, the Agreement signed by the delegates upon the European Commission on the preceding September 18th ; the Secretary-General, in due course, brought it to the notice of the Council of the League ; whereupon the Council adopted the above-mentioned Resolution of December 9th, 1926.

* * *

A.

QUESTION No. 1.

I.

The first question submitted to the Court reads as follows :

“Under the law at present in force, has the European Commission of the Danube the same powers on the maritime sector of the Danube from Galatz to Braila as on the sector below Galatz? If it has not the same powers, does it possess powers of any kind? If so, what are these powers? How far upstream do they extend?”

By the very terms of the submission, the question must be answered according to “the law at present in force”.

In ascertaining what the law is, the first source to be consulted is the “Convention establishing the Definitive Statute of the Danube”. This Convention, which will hereafter be called the Definitive Statute, was made in pursuance of Article 349 of the Treaty of Peace of Versailles (and of the corresponding articles of the other Peace Treaties concluded in 1919 and 1920), which provided that the régime for the Danube should be laid down by a conference of the Powers nominated by the Allied and Associated Powers, that this conference should meet within a year after the Treaty came into force, and that representatives of Germany (Austria, Bulgaria and Hungary) might be present, these Powers having agreed to accept the régime which the Conference should lay down. The Conference met at Paris in 1920, and the Definitive Statute was signed on July 23rd, 1921. The signatories are Belgium, France, Great Britain, Greece, Italy, Roumania, the Serb-Croat-Slovene State, Czechoslovakia, Germany, Austria, Bulgaria and Hungary, thus embracing all the Parties to the present proceeding. The deposit of the ratifications of all the contracting Parties having been completed on June 30th,

1922, the Statute by its terms became effective on October 1st, 1922; and, as the latest and most comprehensive statement of the law relating to the internationalized Danube, it pre-eminently represents the law now in force on that subject.

The Definitive Statute, however, is not complete in itself; on the contrary, many of its articles refer to previous international engagements, and Article 41 expressly provides that all treaties, conventions, acts and agreements relative to international waterways generally, and particularly to the Danube and its mouths, which were in force when the Statute was signed, are maintained in all their stipulations not abrogated or modified by the Statute itself.

In the course of the present dispute, there has been much discussion as to whether the Conference which framed the Definitive Statute had authority to make any provisions modifying either the composition or the powers and functions of the European Commission, as laid down in the Treaty of Versailles, and as to whether the meaning and the scope of the relevant provisions of both the Treaty of Versailles and the Definitive Statute are the same or not. But in the opinion of the Court, as all the Governments concerned in the present dispute have signed and ratified both the Treaty of Versailles and the Definitive Statute, they cannot, as between themselves, contend that some of its provisions are void as being outside the mandate given to the Danube Conference under Article 349 of the Treaty of Versailles.

The Definitive Statute, after reciting (Article 1) that the navigation of the Danube shall be free and open to all flags under conditions of complete equality on the entire navigable course of the river between Ulm and the Black Sea, expressly declares in Article 3 that the freedom of navigation and the equality of flags shall be assured by two distinct Commissions, namely, (1) the European Commission of the Danube, whose jurisdiction (*compétence*), as it is determined in Chapter II, extends over the part of the river called the maritime Danube, and (2) the International Commission of the Danube, whose jurisdiction (*compétence*), as it is determined in Chapter III,

extends over the navigable fluvial Danube, and certain other waterways.

Chapter II of the Definitive Statute, which is entitled "Maritime Danube" (*Danube maritime*), consists of four articles numbered 4 to 7, inclusive.

By Article 4, the European Commission is provisionally composed of representatives of France, Great Britain, Italy and Roumania, each Power having one delegate, but provision is made for the admission by unanimous consent of a delegate of any European State which may in future show that it has sufficient commercial, maritime and European interests at the mouths of the Danube to justify such a step.

By Article 7, the powers of the European Commission may come to an end only by virtue of an international arrangement (*arrangement international*) concluded by all the States represented on the Commission, and the legal seat of the Commission remains at Galatz.

The relevant articles for the purposes of the present submission are Articles 5 and 6, which read as follows¹:

Article 5.

"La Commission européenne exerce les pouvoirs qu'elle avait avant la guerre.

Il n'est rien changé aux droits, attributions et immunités qu'elle tient des traités, conventions, actes et arrangements internationaux relatifs au Danube et à ses embouchures."

Article 6.

"La compétence de la Commission européenne s'étend, dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles, sur le Danube maritime, c'est-à-dire depuis les embouchures du fleuve jusqu'au point où commence la compétence de la Commission internationale."

¹ [English translation from the Treaty Series, L. of N.]

Article 5: "The European Commission retains the powers which it possessed before the war. No alteration is made in the rights, prerogatives and privileges which it possesses in virtue of the treaties, conventions, international acts and agreements relative to the Danube and its mouths."

Article 6: "The authority of the European Commission extends, under the same conditions as before, and without any modification of its existing limits, over the maritime Danube, that is to say, from the mouths of the river to the point where the authority of the International Commission commences."

Article 6 thus specifically declares that the jurisdiction of the European Commission extends to the point at which the jurisdiction of the International Commission begins, and in Chapter III of the Definitive Statute, entitled "Fluvial Danube" (*Danube fluvial*), Article 9 provides that the jurisdiction (*compétence*) of the International Commission extends over the part of the Danube between Ulm and Braila (*entre Ulm et Braila*).

The jurisdiction of the International Commission applies further to the *réseau fluvial* mentioned in Article 2 of the Statute, but it cannot be extended to any other waterway except by an unanimous resolution of the International Commission. The jurisdiction of the International Commission cannot, therefore, by implication be extended to cover alleged gaps which would have been left in that of the European Commission.

It is thus precisely determined, in connection with Article 6, that the jurisdiction of the European Commission extends from the mouths of the river to Braila. By the foregoing provisions, and particularly by Articles 3, 6 and 9, the Definitive Statute obviously assures the internationalization, by means of the two Commissions, of the entire course of the river, uninterruptedly from Ulm to the Black Sea.

On the face of the provisions of Articles 5 and 6, whilst Article 6 deals with the territorial extent of the powers of the European Commission (*compétence territoriale*), Article 5 refers to the nature and scope of the said powers (*compétence matérielle*).

Article 5, however, does not define directly what the powers of the European Commission are; it only says that the Commission retains the powers which it possessed before the war, and that no alteration is made in the rights, prerogatives and privileges which it has under the treaties, conventions, international acts and agreements relative to the Danube and its mouths.

It is to be inferred from Article 5 that, unless there is some special provision to the contrary, all the powers conferred upon the European Commission by the treaties, conventions, international acts and agreements referred to in the said

article extend over the sector of the Danube over which, by virtue of the combined effect of Articles 6 and 9, the authority of the European Commission clearly extends.

Such a special provision might be looked for in the intermediate clause of Article 6, according to which the authority of the European Commission is to extend over the above-mentioned area under the same conditions as before, and without any modification of its existing limits (*dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles*).

These words may be interpreted as leaving it open to show that the jurisdiction of the European Commission, extending over the maritime Danube from the mouths to the point where the jurisdiction of the International Commission begins, was not exercised in the same way in all places; and as it is admitted that the Commission possesses all its powers in the sector from the sea up to Galatz, the words *dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles* would only have the effect of reserving the possibility that some of the powers of the Commission do not extend from Galatz up to the point where the jurisdiction of the International Commission commences.

It is important to lay stress on the fact that the text not only does not say what are the powers of the European Commission which would not extend over the sector Galatz-Braila, but that it does not even affirm that there are powers so limited. The effect of the provision is simply this: if there are powers of the European Commission the territorial extent of which is more restricted than the territorial extent of other powers, the existing limits shall be maintained.

The question thus arises whether the "same conditions as before" and the "existing limits" referred to in Article 6 are such conditions and limits as may be inferred from rules of law or conditions and limits which existed in fact before the war.

In this connection, it should first of all be observed that if Article 6 should be construed as referring solely to legal arrangements, these would include, among other things, Article 1 of the Treaty of London of 1883, according to which

the exercise of the powers of the Commission is extended from Galatz to Braila. Roumania did not sign or ratify this Treaty. But to assume that for this reason the European Commission possesses no powers at all on the sector above Galatz is not consistent with the Definitive Statute, which fixes the territorial extent of the powers of the Commission from the mouths of the river to the point where the authority of the International Commission commences, and therefore excludes the possibility that no powers whatever exist between Galatz and Braila.

It may also be observed that, according to the record before the Court, it has been contended that the Definitive Statute was so framed as to perpetuate the divergence of views which had arisen under Article 1 of the Treaty of London between the States represented on the European Commission. This contention cannot however be accepted, because it would amount to the maintenance over the Danube system of an uncertain and precarious situation.

On the other hand, it is quite reasonable to suppose that the controversy was settled on the basis of the *status quo ante bellum*. The Treaty of London and the divergence of views concerning its validity had not prevented the European Commission from accomplishing its task. In the long period of time that has elapsed since the conclusion of the Treaty of London, matters had continued in a more or less satisfactory way, and no one denied that the European Commission had exercised some powers on the sector from Galatz to Braila, no matter what the legal ground and nature of these powers may have been. In these circumstances, the confirmation of the jurisdiction of the European Commission, as it was exercised before the war in the contested sector of the Danube, might easily have appeared to be the best possible solution of the difficulty. It may be added that the restoration of the *status quo ante bellum* was one of the leading principles of the provisions of the Treaty of Versailles concerning the Danube as well as of those of the Definitive Statute.

The Court therefore has arrived at the conclusion that the words "under the same conditions as before and without any

modification of its existing limits" in Article 6 of the Definitive Statute, refer to the conditions which existed in fact before the war in the contested sector, and that their effect is to maintain and confirm these conditions, thus putting an end to the questions which had arisen under Article 1 of the Treaty of London.

Before entering upon the analysis of the contentions of the Governments concerned, the Court observes that the view which it has just developed as to the purport of the Definitive Statute is based solely on the language employed in the Statute and on the historical facts upon which it rests, without any reference to preliminary discussions or drafts. The Court adheres to the rule applied in its previous decisions that there is no occasion to have regard to the protocols of the conference at which a convention was negotiated in order to construe a text which is sufficiently clear in itself. If, however, some doubt could still remain upon the true meaning of the words *dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles*, it will be shown later on that the preparatory work fully confirms the conclusion at which the Court has now arrived.

*

France, Great Britain and Italy contend that all the powers of the Commission apply in the same way on the Galatz-Braila sector of the river as they do on the sector below Galatz.

Roumania's contention is, broadly speaking, that, from the mouths of the river to Galatz, the European Commission possesses all the rights conferred upon it by treaties, conventions, international acts and agreements, and that from Galatz to Braila the European Commission only possesses what she describes as "technical powers" (*compétence technique*), i.e. the power of keeping the river in a state suitable for navigation and of maintaining a pilotage service capable of navigating sea-going vessels, but not what she describes as the "juridical powers" (*compétence juridique*), i.e. especially the power of enforcing regulations.

The chief arguments advanced by the Roumanian Government in support of this contention may be grouped under the following heads:

- (1) the genesis of Article 6 of the Definitive Statute ;
- (2) the so-called *Protocole interprétatif* and the draft *modus vivendi* of 1922 ;
- (3) arguments based on the principle of sovereignty.

(1) The Roumanian Government maintains that the meaning of the words "dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles" in Article 6 should be determined in the light of the elaboration of the Definitive Statute. Thus it states that, according to the preparatory work, Article 6 is only a new form of a draft, adopted by the Conference at the first reading, from the terms of which it followed that between Galatz and Braila the European Commission was to have technical powers (*compétence technique*) only, and not juridical powers. The facts may be summarized as follows.

In the draft Convention presented by the French delegation at the opening of the Conference, the relevant provision, numbered as Article 6, was to the following effect ¹:

"La juridiction de ladite Commission [Commission européenne] s'étend, comme il est dit à l'article 4, sur toute la partie du fleuve accessible aux navires de haute mer, c'est-à-dire de Braila à la mer Noire."

Later on, after lengthy discussions concerning the maintenance of the European Commission, its composition and powers, the French delegation submitted a revised draft of Article 6 in the following terms ²:

¹ [Translation by the Registry.]

"The jurisdiction of the said [European] Commission extends, as provided in Article 4, over all that portion of the river that is accessible to sea-going vessels, that is to say from Braila to the Black Sea."

² [Translation by the Registry.]

"The jurisdiction of the said Commission extends, as provided in Article 3, over the maritime Danube, that is to say from the Black Sea to Galatz, the ports on the river other than Sulina being excluded.

The technical competence of the Commission shall however extend, as heretofore, over the navigable channel between Galatz and Braila, and shall include the pilotage services."

“La juridiction de ladite Commission s’étend, comme il est dit à l’article 3, sur le Danube maritime, c’est-à-dire de la mer Noire jusqu’à Galatz, à l’exclusion des ports fluviaux autres que le port de Soulina.

Toutefois, la compétence technique de la Commission s’étendra comme par le passé sur le chenal navigable entre Galatz et Braila. Le service du pilotage reste compris dans cette compétence.”

Notwithstanding some objections raised by the German plenipotentiary to this text, as being a modification of the pre-war powers of the Commission, which were to be maintained under the Treaty of Versailles, the French draft was adopted at the first reading.

When Article 6 again came up for discussion, the President of the Conference, who was the French plenipotentiary, called attention to the objections which the German delegation had communicated in writing, to the effect that the text, as adopted at the first reading, was inconsistent with Article 347 of the Treaty of Versailles, because it left the Galatz-Braila sector outside the authority of either the European or of the International Commission. The President therefore proposed a new draft, which was, save for a very slight modification, identical with the text now included in the Definitive Statute as Article 6. On that occasion, the President, speaking in his capacity as French plenipotentiary, expressly added that the alteration introduced in the text was merely one of form and not of substance. This declaration, however, is hardly consistent with the terms of the text so proposed, if this text was intended to take into account the observations made by the German delegation.

It is to be observed that previously, at the second reading, the following alternative text of Article 6 had been put forward by the Roumanian delegation¹:

“La compétence de ladite Commission s’étend sur le Danube maritime, c’est-à-dire depuis la mer Noire jusqu’au point où

¹ [*Translation by the Registry.*]

The authority of the said Commission extends over the maritime Danube, that is to say from the Black Sea to the point at which the authority of the International Commission commences, the ports on the river other than Sulina being excluded.

However, between Galatz and Braila, this authority shall be understood as involving no change whatever, in law or in fact, of the pre-war situation.

commence la compétence de la Commission internationale, à l'exclusion des ports fluviaux autres que le port de Soulina.

Toutefois, entre Galatz et Braila, cette compétence doit être entendue comme n'apportant, ni en fait ni en droit, la moindre modification à la situation d'avant-guerre."

This text does not mention any distinction between technical and juridical powers, but refers generally to the situation which existed before the war between Galatz and Braila. And when the Roumanian plenipotentiary declared that he was prepared to accept the French text, he at the same time made the proposal that the European Commission might be asked by the President to define in a special protocol the exact extent of the powers which it had exercised before the war, so as to avoid any misunderstanding as to the true limits of its authority, which, though ending at the point where the authority of the International Commission commenced, was not exercised in the same manner between Galatz and the sea as between Galatz and Braila.

The Court must recall in this connection that preparatory work should not be used for the purpose of changing the plain meaning of a text. The Court in fact considers that, whatever may be the scope of the words "dans les mêmes conditions que par le passé et sans aucune modification à ses limites actuelles", it is impossible to construe this expression as meaning that the European Commission possesses only technical powers between Galatz and Braila. That expression might have this effect if, in fact, the European Commission exercised only technical powers in the sector in question; but the words in themselves clearly refer to the conditions which existed, whatever they may have been, and not to a single and specific condition, as Roumania contends.

Moreover, the records of the preparation of the Definitive Statute do not, in the opinion of the Court, furnish anything calculated to overrule the construction indicated by the actual terms of Article 6.

Obviously, the members of the Conference were not all well acquainted with the situation which existed before the war between Galatz and Braila; what they agreed upon was to maintain, in conformity with the Treaty of Versailles, that

situation whatever it may have been. It is also important to remark that the Roumanian plenipotentiary himself referred to the distinction between technical and juridical powers only because, in his opinion, it coincided with the real situation in the sector Galatz-Braila before the war.

The history of the relevant articles of the Treaty of Peace of Versailles has also been invoked on behalf of Roumania in this connection. The record of the work preparatory to the adoption of these articles being confidential and not having been placed before the Court by, or with the consent of, the competent authority, the Court is not called upon to consider to what extent it might have been possible for it to take this preparatory work into account.

(2) Roumania maintains that Article 6 of the Definitive Statute must be read in connection with the so-called *Protocole interprétatif* and that, if the article is so read, it clearly appears that the European Commission does not possess juridical powers in the Galatz-Braila sector.

This Protocol, which constitutes the "special protocol" referred to above, forms Annex II to the minutes of the 68th meeting of the Danube Conference, and runs as follows¹:

"A la suite de l'adoption par la Conférence internationale du Danube de l'article 6 du projet de Statut définitif qui détermine la compétence de la Commission européenne, les

¹ [Translation by the League of Nations.]

"INTERPRETATIVE PROTOCOL TO ARTICLE 6 OF THE STATUTE OF THE DANUBE.

"As a result of the adoption by the International Danube Conference of Article 6 of the Draft Definitive Statute determining the competence of the European Commission, the delegates of France, Great Britain, Italy and Roumania have agreed, at the request of the Conference, to draft the following Protocol with a view to laying down their interpretation of the above-mentioned provision.

The undersigned delegates declare that, in stipulating that the authority of the European Commission extends to the maritime section of the Danube — i.e., from the mouths of the river to the point where the authority of the International Commission begins—Article 6 of the Statute does not, and shall not hereafter, entail any modification of the conditions under which, or the limits within which, this administrative régime has hitherto been applied. It is clearly understood, therefore, that the powers of the Commission are not, in virtue of this provision, either increased or diminished, and that they should continue to be exercised on the river in the same way as in the past in conformity with the treaties, international acts, and rules of navigation to which all the States represented have adhered. It is also understood that between Galatz and Braila the European Commission will continue as in the past to maintain the navigable channel and its pilotage service.

The present declaration shall be communicated to the International Conference and placed in the official archives of the European Commission of the Danube."

délégués de France, de Grande-Bretagne, d'Italie et de Roumanie ont convenu, sur la demande de la Conférence, de rédiger le protocole suivant en vue de fixer l'interprétation qu'ils ont entendu donner à la disposition susvisée :

Les délégués soussignés déclarent qu'en stipulant que "la compétence de la Commission européenne s'étend sur le Danube maritime, c'est-à-dire depuis les embouchures du fleuve jusqu'au point où commence la compétence de la Commission internationale", l'article 6 du Statut n'apporte et ne doit apporter à l'avenir aucune modification aux conditions ni aux limites dans lesquelles ce régime administratif a été appliqué jusqu'aujourd'hui. Il est donc clairement entendu que les pouvoirs de la Commission ne sont, en vertu de cette disposition, ni augmentés ni diminués, et qu'ils doivent continuer à s'exercer sur le fleuve de la même manière que par le passé, en conformité avec les traités, actes internationaux et règlements de navigation auxquels tous les États représentés ont adhéré. Il est également entendu qu'entre Galatz et Braïla la Commission européenne continuera, comme par le passé, à entretenir le chenal navigable et son service de pilotage.

La présente déclaration sera communiquée à la Conférence internationale à toutes fins utiles et versée aux archives officielles de la Commission européenne du Danube."

This Protocol was drawn up by the delegates to the European Commission, who had been officially invited to attend the Danube Conference in an advisory capacity. It purports to have been drawn up at the request of the Conference, and to have been intended to state the interpretation which the Commission placed upon Article 6 of the Statute, showing the exact extent of the powers which it exercised before the war. It was understood that it should be simply communicated to the Conference, as this was a domestic matter which only affected the European Commission.

But the States interested in the present dispute do not agree as to the true meaning and the value of the Protocol, and it appears from the record before the Court that the members of the Commission who had signed the Protocol also disagreed as to its proper meaning. Whilst Roumania contends that the Interpretative Protocol is decisive in her favour, (1) as evidence of the meaning of the Statute, as accepted by the Conference, to the effect that in the past the European Commission exercised between Galatz and Braïla only the

powers of maintaining the channel and providing pilots, and (2) as a decision of the European Commission, the other Powers at present represented on the Commission maintain that the Protocol contains nothing adverse to their contentions, as it only states that Article 6 in no way modified the conditions under, or limits within which the powers of the European Commission had been exercised in the past, and it is silent on the point whether the Commission had possessed or exercised jurisdictional powers.

It is clear that if the Roumanian construction is sound, the Protocol goes far beyond the scope of Article 6 of the Definitive Statute, as interpreted by the Court. Such an extension of the bearing of this article would, however, be binding on the Parties to the Definitive Statute only if, as Roumania contends, the Protocol is to be considered as an authoritative interpretation of the Statute, or if the European Commission as such were authorized to determine, by its own decision, the limits of its jurisdiction.

But the Court is unable to agree with this contention.

The so-called Interpretative Protocol is not an international agreement between the Parties to the Definitive Statute; it is not annexed thereto, whilst many interpretations of the articles of the Statute were inserted in the Final Protocol, which has the same validity and duration as the Convention to which it refers. The Interpretative Protocol is not even mentioned in the Statute, which Roumania signed without any reservations, and can in no sense be considered as a part of it.

Neither is it possible to consider the Interpretative Protocol as a decision of the European Commission by which the terms of the Definitive Statute were modified. It has been already said that the Commission was asked to attend the Danube Conference in an advisory or expert capacity. But even if the document were to be regarded as a decision of the European Commission, the Commission had no power to decide to abandon the functions with which it was entrusted under existing international treaties.

The Court, therefore, can only consider the Interpretative Protocol as a part of the preparatory work. Whatever may

be its importance from this point of view—and in this respect the Court refers to what it has already stated above—it is certain that it cannot prevail against the Definitive Statute and therefore that it cannot be regarded as authoritatively stating that the European Commission possessed only technical and not juridical powers on the Galatz-Braila sector, even assuming, for the sake of the argument, that this is the true meaning of the Interpretative Protocol.

With regard, finally, to the so-called *modus vivendi* of October 1922, the Court does not think it necessary to consider at length this proposed arrangement, the history and purport of which have been briefly set out in the first part of the present Opinion. It will suffice to observe that, though it is perfectly true that the three delegates of France, Great Britain and Italy, with a view to arriving at an amicable solution of the difficulties with which the Commission was faced, declared that they would agree to leave to the Roumanian authorities the enforcement of the regulations from a certain point below Galatz up to Braila, it is equally true that this proposal was made dependent upon conditions which were not accepted by the Roumanian Government. No agreement was therefore reached, and the matter was left as it stood. The most that can be inferred from what then happened is that the three delegates did not consider it impossible for the European Commission to perform its duties even without the power of making and enforcing regulations above Galatz. Evidently, however, they did not think that this limitation of the powers of the Commission was made by the Definitive Statute, as, otherwise, there would have been no subject-matter for a compromise.

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The Court therefore arrives at the conclusion that the arguments advanced by the Roumanian Government do not override the construction of the Definitive Statute, which has been set out above.

(3) Roumania recognizes that by Article 53 of the Treaty of Berlin the European Commission was empowered to exercise its functions in complete independence of the territorial authority

as far as Galatz. She, however, maintains that the exercise by the Commission of its powers as far as Braila under the conditions laid down by the Treaty of Berlin could not be based upon any other instrument than the Treaty of London, which Roumania considers as not binding upon her. Any such extension would, therefore, in her contention, constitute a violation of her sovereign rights.

The Court is unable to share this opinion. According to the construction placed by the Court upon Article 6 of the Definitive Statute, this article confirms the pre-war situation of fact in the contested sector, whatever this situation may have been. If, therefore, seeing that Roumania has signed and ratified the Statute, it is found that this situation included the exercise by the European Commission of the same powers between Galatz and Braila as below Galatz, Roumania must be considered as having accepted the exercise of these powers in the contested sector. But, as the Court has had occasion to state in previous judgments and opinions, restrictions on the exercise of sovereign rights accepted by treaty by the State concerned cannot be considered as an infringement of sovereignty. It may, moreover, be added that—and this point will be further developed below—Roumania already had, before the war, participated in the elaboration and promulgation of regulations having the force of international treaties and conferring powers upon the European Commission between Galatz and Braila as well as below Galatz.

In this connection the Court wishes to record that, in the course of arguments submitted on behalf of Roumania, it has been more than once admitted that the European Commission may have exercised certain powers in the contested sector; but that, at the same time, it has been contended that such exercise was based on mere toleration by the territorial State and that toleration could not serve as a basis for the creation of legal rights.

In this respect it will suffice to observe that, under the construction of Article 6 of the Definitive Statute adopted by the Court, even if, before the war, an actual exercise of certain powers by the Commission above Galatz was based on mere toleration, this practice has now been converted into

a legal right by Article 6 of the Definitive Statute. It is therefore not necessary to examine whether, in international law, the continued exercise of certain powers might not have converted into a legal right even a situation considered by Roumania as a mere toleration.

It cannot be maintained that Article 6 was intended to continue in a state of mere toleration the situation which existed before the war; for toleration implies a negation of right; and, as has already been shown, it would be entirely at variance with the legal system established by the Definitive Statute, if on one sector of the river neither Commission should have any legal powers.

* * *

According to the construction placed by the Court upon Article 6 of the Definitive Statute, and considering the terms of the question upon which its opinion has been asked, it is now incumbent on the Court to examine and consider whether, in point of fact, the European Commission exercised, before the war, the same powers between Galatz and Braila as below Galatz.

Before entering upon this enquiry, the Court, however, thinks it convenient to examine, as briefly as possible, what are the powers conferred upon the European Commission by the treaties, conventions, acts and international arrangements referred to in Article 5 of the Definitive Statute and how the powers described by Roumania as technical powers are connected with those referred to by her as juridical powers. Even if it is true that under Article 6 the question under consideration is mainly a question of fact, it is not unimportant, in order to appreciate to its full extent the situation which existed before the war in the contested sector, to see whether the distinction drawn by the Roumanian Government between technical and juridical powers finds any support in the provisions upon which the activity of the European Commission depends, or whether it is not rather in contradiction with the spirit and the scope of those provisions.

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Prior to 1815, the right to navigate rivers which separated or traversed two or more States was not regulated by any general principle or general act, and formed a subject of constant dispute. For the most part, each State sought to monopolize the navigation of streams flowing through its own territory, and even the right of an upper riparian State to access to the sea was denied. As the existence of such conditions not only hampered the development of commerce but also tended to prevent the growth of international relations appropriate to a state of peace, the Parties to the great international conflict which covered the concluding years of the XVIIIth century and the earlier part of the XIXth, introduced into the arrangements by which this long period of warfare was ended, provisions for the freedom of navigation of international streams.

In conformity with the provisions of the first Peace of Paris of May 30th, 1814, the Final Act of the Congress of Vienna of June 9th, 1815, provided that the Powers whose territories were separated or traversed by the same navigable river should regulate all that regarded its navigation by common consent, and should for this purpose name commissioners who should adopt as the basis of their proceedings certain principles laid down in the Act itself. The first of these was the principle that the navigation of such rivers along their whole course, from the point where each of them became navigable to its mouth, should be entirely free, and should not, in respect of commerce, be prohibited to any one, subject to uniform regulations of police. The rest of the principles mainly related to uniformity of navigation dues, and the establishment of a special service for the collection of such dues, the exclusion of national customs houses from interfering in the matter of navigation dues or from throwing obstacles in the way of navigation, the maintenance of navigable channels, and the keeping of towing paths in good repair, and the establishment of regulations of police alike for all, and as favourable as possible to the commerce of all nations. The arrangements, once settled, were not to be subject to change, except with the consent of all riparian States.

As a fixed basis for the regulations which commissioners were later to draw up, certain "Particular Regulations", relating to the Rhine, the Neckar, the Main, the Moselle, the Meuse, and the Scheldt, were annexed to the Final Act and declared to form part of it. The Particular Regulation relating to the Rhine, which was later on expressly referred to in the clauses of the Treaty of 1856 relating to the Danube, provided, among other things, for the establishment of special offices for the collection of navigation dues, and for the appointment in each State of special judicial officers to determine, in the first instance and in the name of their sovereign, disputes relating to the regulations; but it was provided that appeals from the decisions might be taken either to a superior tribunal of the country or to the Central Commission which was to be set up in order to establish a perfect control over the observance of the general regulations, and to serve as an authoritative means of communication between the States of the Rhine on all subjects relating to navigation. Provision was also made for the appointment of a chief inspector of navigation and of deputy-inspectors, who were respectively to attend to different sectors of the river.

Owing to a difference between the Netherlands and other riparian States as to the limitation of rights of sovereignty over the sea adjacent to the Dutch coasts, where it mingled with the waters of the Rhine, the detailed definitive Regulation regarding the navigation of the Rhine was put into effect only by the Convention of March 31st, 1831, to which Baden, Bavaria, France, Hesse, Nassau, the Netherlands and Prussia were parties. (*Rheinurkunden*: The Hague, Munich and Leipzig, 1918. I. 212 *et seq.*) This Regulation, which incorporated and amplified the provisions of the Particular Regulation of 1815, remained in force until October 17th, 1868, when it was superseded by new regulations agreed upon at Mannheim; but in the character of the regulations there was no essential change.

The present Central Commission continues to perform its function as an optional Court of Appeal in a normal manner.

(*La Navigation du Rhin*. Organe agréé par la Commission centrale pour la Navigation du Rhin. Tome I, No. 1, p. 4; Strasbourg, 1922-1923.)

It was not until 1856 that definite provision was made for the internationalization of the Danube. Turkey, under whose dominion the mouths of the lower part of the stream lay, was not a party to the arrangements of Vienna, and was not then admitted to the concert of the Powers. But by the Treaty of Peace between Austria, France, Great Britain, Prussia, Russia, Sardinia and Turkey, signed at Paris on March 30th, 1856, bringing to a close the Crimean War, Turkey was (Article 7) admitted "to participate in the advantages of the public law and concert of Europe", and the contracting Powers, while engaging each to respect the independence and territorial integrity of the Ottoman Empire, agreed to guarantee in common the strict observance of that engagement. Coincidentally with this elevation of the position of Turkey in Europe, Article 15 of the Treaty expressly declared that the Vienna principles relating to the internationalization of rivers should in future be applied to the Danube and its mouths, that this provision should henceforth form "a part of the Public Law of Europe", and that the High Contracting Parties took it "under their guarantee". The Vienna principles thus referred to were those which had found their expression in the Rhine Regulations summarized above.

In order to carry out this arrangement, Article 16 provided for the creation of the Commission, called the *European Commission of the Danube*, composed of representatives of Austria, France, Great Britain, Prussia, Russia, Sardinia and Turkey, which was to plan and execute from Isaktcha downward the works necessary to clear the mouths of the Danube, as well as the neighbouring parts of the sea, from the sands and other impediments which obstructed them; and in order to cover the cost of these works and of the establishments connected with them, the European Commission was empowered to fix, by a majority vote, duties of a suitable rate, the flags of all nations to be treated on a footing of perfect equality.

The Treaty further provided, by Article 17, for the establishment of yet another international commission, called the *River Commission*. This Commission, which was intended to be permanent, was (1) to prepare regulations of navigation and river police; (2) to remove impediments, of whatever nature they might be, to the application to the Danube of the provisions of the Vienna Treaty; (3) to cause the necessary works to be executed throughout the whole course of the river; and (4), after the dissolution of the European Commission, to see to the maintenance of the navigability of the mouths of the Danube and of the neighbouring parts of the sea. It was understood (Article 18) that the European Commission would complete its task in two years, and that the River Commission would complete tasks (1) and (2) within the same period.

On the strength of the provisions just recited, and particularly of Article 17, it has been asserted that the European Commission not only originally was, but has continued to be, legally invested only with "technical" powers incident to the execution of works to clear the mouths of the river and to put the channel in a navigable state.

The Court does not take this view.

Regulations for the River Commission were drawn up in 1857, but they never came into force. Moreover, it was found that the physical task committed to the European Commission could not be terminated within the allotted two years. In these circumstances, the Parties to the Treaty of Paris all concurred in prolonging the existence of the European Commission, and in entrusting to it the power to make and enforce regulations of navigation and police. From 1858 to 1863, inclusive, the Commission promulgated regulations concerning the throwing overboard of ballast, the police of the navigation, the pilot service, the police of the port and the roadstead of Sulina, the lighter service, the police of the port of Toultscha, the control of the operations of the Navigation Chest, and the navigation of rafts and floats of timber. These separate regulations were systematized in the "Provisional Regulations of Navigation and Police applicable to the Lower Danube", promulgated by the

European Commission at Galatz on November 1st, 1864. This instrument opened with the express declaration that they were enacted, by common agreement, in pursuance of the stipulations of the Treaty of Paris, and that as such they had the "force of law". The Provisional Regulations were, however, soon incorporated in the "Regulation of Navigation and Police applicable to the Lower Danube", which was annexed to and formed part of the Public Act concluded at Galatz, November 2nd, 1865, by the plenipotentiaries of all the Parties to the Treaty of Paris. The Preamble to this Act, after reciting the mandate committed to the European Commission by the Treaty of Paris, expressly enumerates, among the tasks which the Commission, "acting in virtue of this mandate", had performed, the regulation of the different services connected with navigation.

By the Public Act of Galatz, all the works and establishments connected with navigation were declared to be "placed under the guarantee and protection of international law"; and the European Commission was charged with their administration, maintenance and development, "to the exclusion of all interference whatever". The "Regulation of Navigation and Police", enacted by the European Commission, was declared to be "binding as law, not only in what concerns the river police, but also for the judgment of civil processes arising from the exercise of the navigation". The exercise of navigation was placed under the authority and superintendence of an officer called the Inspector-General of the Lower Danube, and of the Captain of the Port of Sulina; and merchant captains, of whatever nationality they might be, were bound to obey the orders given to them in virtue of the Regulation of Navigation and Police by those officials. The carrying out of the Regulation was declared to be "ensured by the action of the vessels of war stationed at the mouths of the Danube" under Article 19 of the Treaty of Paris; and in default of a vessel of war qualified to interfere, the international authorities of the river might have recourse "to the vessels of war of the territorial Power". The Regulation conferred upon the Inspector-General, and upon the Captain of the Port of Sulina, judicial power to impose, each within his jurisdiction, the penalties

specified in the Regulation for violations of its provisions. An appeal from such sentences might be taken to the European Commission. It is also to be observed that the Regulation expressly stated (Article 112) that the Commission might modify it.

These facts leave no room for doubt that, from the outset, the Parties to the Treaty of Paris treated the making and enforcement, by means of an International Commission, of regulations of navigation and police, involving the exercise of juridical powers or *compétence juridique*, as an essential incident of the internationalization of the Danube and of the exercise of the technical powers or *compétence technique* to make the river navigable and to keep it in a navigable state. In prolonging the life of the European Commission, and entrusting to it the regulatory function, the Parties to the Treaty of Paris merely assured the exercise by an existing international body, which they had themselves created, of an essential power which had been intended to be exercised by another and similar body.

At a Conference held at Paris in 1866, between the plenipotentiaries of the Parties to the Treaty of Paris of 1856, a protocol presented by the plenipotentiary of France was unanimously adopted, on March 28th, by which the Powers gave to the Public Act of Galatz, together with the annexed Regulation of Navigation and Police, their formal sanction, thus giving to both instruments the full force and effect of an international treaty.

By the Treaty between Austria-Hungary, France, Germany, Great Britain, Italy, Russia and Turkey, concluded at Berlin, July 13th, 1878, the navigation of the Danube was (Article 52) again "recognized as being of European interest"; and it was stipulated that the light war-vessels of the Powers at the mouths of the Danube might ascend the river as far as Galatz. This stipulation was in conformity with the further provision (Article 53) that the European Commission, on which Roumania was in future to be represented, was "maintained in [its functions]", and should "exercise them henceforth as far as Galatz" in "complete independence of the territorial

authority". To this was added the declaration: "All the treaties, arrangements, acts and decisions relating to these rights, privileges, prerogatives and obligations are confirmed." That this declaration confirmed the previous regulations in their full extent cannot be reasonably controverted.

On May 28th, 1881, there was signed at Galatz the "Additional Act to the Public Act of November 2nd, 1865". The Parties to the Additional Act were Great Britain, Germany, Austria-Hungary, France, Italy, Roumania, Russia and Turkey. By Article 9 of the Additional Act, the avowed object of which was to put the Public Act of 1865 in harmony with the Berlin Treaty, all provisions of the Public Act not expressly modified by the Additional Act retained all their force and effect. The rights, attributes and immunities of the European Commission, as established by the Treaty of Paris of 1856, of London of 1871, the Public Act of 1865, and the Acts and Decisions prior to the Berlin Treaty, were expressly confirmed. But the appointment, remuneration, control and dismissal of the Inspector of the Lower Danube and his subordinates, and of the Captain of the Port of Sulina and his subordinates, were in future committed to the European Commission, and in deciding, as judges of first instance, upon contraventions committed within the limits of their respective districts in matters of police and of navigation, they were to give their decisions in the name of the European Commission.

By Article 54 of the Treaty of Berlin, the Powers undertook, one year before the expiration of the term assigned for the duration of the European Commission, to come to an understanding as to the prolongation of its powers or the modifications which they might consider to be necessary.

The Treaty signed at London, March 10th, 1883, between the Parties to the Treaty of Berlin, prolonged (Article 2) the powers of the European Commission for a period of 21 years, dating from April 24th, 1883, and provided that, at the expiration of that period, the Commission's powers should be tacitly prolonged for successive terms of three years, unless

one of the contracting Parties should, one year before the expiration of such a term, give notice of its intention to propose modifications in the Commission's constitution or powers. The Treaty further declared (Article 1) that the jurisdiction (*jurisdiction*) of the Commission was extended from Galatz to Braila ; and (Article 8) that "all the treaties, conventions, acts and arrangements relating to the Danube and its mouths" were maintained in all their provisions, except as modified by the new Treaty.

Finally, by the Treaty of Peace concluded at Versailles, June 28th, 1919, and the later treaties connected with it, the system of internationalization of international waterways, begun at Vienna more than a century before, was carried on, and broadly and comprehensively developed.

Articles 331 to 339, inclusive, contain general clauses relating to the Elbe, the Oder, the Niemen and the Danube. By Article 331 all these rivers are from a certain point declared to be "international". This applies to the Danube from Ulm. Article 332 declares that on these "international" waterways the nationals, property and flags of all Powers shall be treated on a footing of perfect equality, no distinction being made to the detriment of the nationals, property or flag of any Power between them and the nationals, property or flag of the riparian State itself or of the most-favoured nation.

Articles 346 to 353 contain special clauses relating to the Danube. Article 346 provides :

"The European Commission of the Danube reassumes the powers it possessed before the war. Nevertheless, as a provisional measure, only representatives of Great Britain, France, Italy and Roumania shall constitute this Commission."

By Article 347, the Danube system, from the point where the competence of the European Commission ceases, is to be placed under the administration of an International Commission composed as prescribed in the article. Article 376 provides that disputes which may arise between interested Powers with regard to the interpretation and application of

the preceding articles shall be settled as provided by the League of Nations.

It thus results from the examination of the international instruments defining the powers of the European Commission which has just been made, that, far from supporting the Roumanian contention that a distinction could and should be drawn between so-called technical and so-called juridical powers, these instruments would be fatal to any such view, unless a situation of fact had developed superseding the legal situation defined by the relevant international acts. No divergence of opinion existing as concerns the exercise, by the European Commission, below Galatz of both "technical" and "juridical" powers, the task of the Court therefore now is to examine whether, in point of fact, the uncontested exercise by the European Commission, before the war, in the Galatz-Braila sector, of certain powers warrants the contention, advanced by the Roumanian Government, that these latter powers were only those described by Roumania as technical powers.

* * *

The facts having been already investigated by the Special Committee appointed by the League of Nations, and its report having been adopted by the competent body of the League, the Court does not think it proper to make new investigations and enquiries.

The Court is fully aware that the Roumanian Government has refused to accept the facts established by the Committee as conclusive evidence in the matter; but the Court is of opinion that, for the purposes of the present procedure, it must accept the findings of the Committee on issues of fact unless in the records submitted to the Court there is evidence to refute them.

As regards the exercise before the war between Galatz and Braila of jurisdictional powers by the authorities of the European Commission and of Roumania respectively, the findings of the Special Committee are based on an examination of the cases produced before it and of the appertaining documents. These cases comprised the more than 400 cases on which the representatives of Roumania based the allegation

that jurisdiction in the contested sector had been exercised by Roumania rather than by the European Commission. The Special Committee found, on an examination of the records, that these were cases the cognizance of which fell outside the terms of the Regulations. It found, on the other hand, that from 1883 to 1899, and from 1904 to 1914, 63 cases had been adjudicated by the authorities of the European Commission.

In connection with the gap which the Special Committee had found for some years in the list of cases relating to the exercise of the jurisdictional functions by the European Commission and its authorities, it may be mentioned that the Italian representative made before the Advisory and Technical Committee for Communications and Transit, and repeated before the Court in the course of the oral arguments, the statement that he had found five more cases, one in each of the years 1899, 1901, 1902 and two in 1903. It does not appear that this statement has been contested by the Roumanian representative either before the Commission or before the Court.

On the basis of the facts as established by it, as a result of the hearings of evidence and of the enquiries on the spot to which it proceeded, the Special Committee arrived at the conclusion which it stated in its report in the following terms¹:

“Dans l'esprit du Comité, il y a une chose qui domine toutes ces considérations: c'est que, en fait, la pratique d'avant-guerre, dans le secteur Galatz-Braïla, a été l'exercice des pouvoirs de juridiction de la Commission européenne.”

In order to establish that such is in reality the position, the Court will, without undertaking to make its enumeration complete, examine the powers indisputably possessed by the Commission under various international agreements, including the regulations in force immediately before the war, below Galatz, and will ascertain, in relation to each point of jurisdiction, if the particular power existed also over the Galatz-

¹ [Translation.]

“In the Committee's opinion, there is one fact of predominant importance which emerges clearly from all these considerations, namely, that in actual practice the European Commission exercised powers of jurisdiction in the Galatz-Braïla sector before the war.”

Braila sector. The situation of fact results not only from decisions taken by the Commission, but also from regulations and other prescriptions, made by the European Commission—on which, since 1878, Roumania has been represented—regulations which, at least in some of their clauses, refer expressly to the Galatz-Braila sector. Even if the legal value of such clauses might be contested because they were inconsistent with the territorial limits of the powers of the Commission, as defined by the treaties which Roumania recognizes as binding upon her, or inconsistent with the titles or other clauses of such regulations and prescriptions, it cannot be denied that the promulgation of an act containing one or more clauses relating to the Galatz-Braila sector is an exercise of powers over that sector. If such regulations and prescriptions were made immediately before the war, as is the case with regard to two most important acts of this character, i.e. the Regulation of 1911 and the Special Instructions of 1913, it is not possible to presume that the powers given under these clauses were not exercised before the war.

The powers normally appertaining just before the war to the European Commission below Galatz are mainly derived from the Public Act of 1865 and its annexes, from the Additional Act of 1881 and from the Regulations of 1911, as well as from the Special Instructions of 1913.

The powers of the European Commission of the Danube may be functionally divided as follows:

Technical works consist of the carrying out and maintenance of works in the river and on the banks with a view to facilitating and ensuring navigation over the navigable channel. On this essential point, there is no difference of opinion as to the fact that such works have been carried out by the Commission also in the Galatz-Braila sector and not only below Galatz.

Navigation dues. Under the Public Act of 1865, although the Treaty of 1856 designated Isaktcha as the upstream limit of the powers of the Commission, the tariff of navigation dues (Annex B of the Public Act) already fixed, under Article 12, the dues as regards ships which were making the voyage

from Galatz, or from a port above this point, to Sulina. These dues, which varied according to distances, were levied not only for compulsory pilotage but also and above all to cover the expenses of the works carried out by the European Commission. The payment of these taxes was ensured by penal sanctions (fines) to be imposed by the organs of the Commission (Articles 17 and 18).

The tariff and Regulations annexed to the Additional Act of May 19th, 1881, provide another system for the collection of the taxes (to be paid by all ships which go from the Danube out to sea); but the Regulations in question, in the elaboration of which Roumania participated, laid down in Article 87 tariffs for compulsory pilotage in which Braila appears as a port of the maritime Danube on the same footing as Galatz, Toultscha, Sulina, etc., and that in spite of the fact that the Treaty of Berlin and the Additional Act of 1881 had assured the exercise of the functions of the European Commission only as far as Galatz.

The *river police*, which is not defined either in the treaties or in the regulations, essentially comprises—if one goes by the relevant passages, and in particular Articles 31 to 98 of the Regulations of 1911—the regulation of navigation as far as the movement of ships on the river is concerned.

Under the second heading of the Regulations, there is an Article (No. 35) which refers to Braila on the same footing as Galatz and the lower ports of the Danube. The rule was first adopted by the Commission in November, 1905. But already before that time there are on record three cases (in 1893, 1896 and 1897) in which sentence was given for passing through the port of Galatz at full or too great speed. It would not be reasonable to suppose that a system for policing the river applies in one of its provisions only to a port, to the exclusion of the sector of the river in which this port is situated. If the European Commission considered it had jurisdiction to issue orders relating to the policing of the river with regard to the manner in which vessels must traverse the Braila and Galatz port sectors, the Commission had, it would seem, equally intended to regulate the

navigation between these two ports. This conclusion is corroborated by the Special Instructions, drawn up in 1913 by the European Commission, which provide, with a view to the policing of the river by an inspector and his four subordinates (superintendents), for the division of the maritime Danube into four sectors, the fourth of which goes as far as Braila (*jusqu'à Braila*, § 14).

The sentences of the European Commission mentioned in Annex B of the Special Committee's Report which appear to relate to the policing of the river on the Galatz-Braila sector, including cases which arose in the port of Braila itself, are as follows (before the war): 1888: Nos. 1283, 2643; 1889: Nos. 1899, 2062; 1891: Nos. 370, 2356; 1892: Nos. 796, 1530; 1893: No. 2371; 1894: Nos. 1781, 2089; 1895: Nos. 465, 1720; 1896: Nos. 1183, 1250, 1502, 1729; 1897: No. 420; 1904: Nos. 637, 1201 A, 1292 A; 1907: Nos. 213, 895, 1074; 1908: Nos. 260, 40, 618; 1909: Nos. 247, 52; 1910: No. 166; 1911: Nos. 96, 166.

If the port of Galatz is, according to the contention of Roumania, to be considered as lying within the sector to which the powers of the European Commission would not normally apply, there remain no less than 24 sentences to be mentioned, enumerated in the Annex to the Report of the Special Committee, which concern cases relating to "Galatz" or "the port of Galatz".

Pilotage is regulated under Heading IV of the Regulations of 1911 (Articles 101-124). Articles 101 and 102 lay down in specific terms that the pilotage of the European Commission of the Danube extends up to Braila. Pilotage up to Braila had already been the subject of provisions of the Regulations of Navigation and Police of 1865 (Article 75) and, as was pointed out above, of those of 1881 (Articles 84 *et seq.*). The Interpretative Protocol notes that the European Commission of the Danube "will continue" its pilotage services. Among the sentences of the European Commission mentioned in Annex B of the Special Committee's Report relating to the pre-war pilotage, there are only six cases which concern pilotage and they all belong to the years before 1897. The absence of sentences of the European Commission with regard to a certain subject matter is not conclusive as regards the non-

existence of undisputed jurisdictional power in relation to such subject.

Lighter services and superintendence of ballast. These functions of the European Commission are provided for under Heading V of the Regulations of 1911 and by Headings IV and III respectively of the Special Instructions of 1913.

The provisions relating to lighters do not expressly mention Braila; but Section 40 of the Instructions provides that the superintendents of the *four* river sectors must exercise control over empty lighters which are proceeding up river; and Section 36 provides that ballast cannot be unloaded (discharged) unless in the presence of an agent of the river police.

The record before the Court does not mention instances dealing with the exercise of these powers in the Galatz-Braila sector; it should be noted that on this point this record is confined to the sector in question.

Towage. The provisions of Articles 146 to 160 do not expressly refer to the Galatz-Braila sector nor to any other sector or special locality except the Sulina branch and the port of Sulina. On the other hand, it should be stated that sentence No. 1017 of 1904 of the European Commission relates to towage of a "bark" without a licence between Braila and Galatz by the S.S. *Loizos*.

Protection of works is dealt with under Heading VII of the Regulations of 1911; the first two articles, which are almost exact reproductions of the corresponding provisions of the Regulations of 1881, contain references to the sector "below Galatz". But Article 163 (dredging operations) is capable of being interpreted more extensively.

Nevertheless, in the Annex to Protocol 388 of May 20th, 1913, indications may be found which are of considerable importance and which justify the conclusion to be arrived at, that the European Commission considered it had jurisdiction to make and enforce sanctions for the protection of works which it had carried out. The European Commission had contemplated the setting up of a special jurisdiction for recovering damages by civil process for injuries caused by third Parties. This proposal was abandoned, Great Britain being of the opinion that it would be outside the jurisdiction of the Commission. But by regulations issued in 1868, the

European Commission established a very high scale of fines for cases of injuries, and these regulations were still in force in 1913. The report annexed to Protocol No. 838 contains the following interesting passage on this subject¹:

“Mais si la création d'un tribunal spécial compétent pour régler la question a pu être considérée comme une mesure dépassant la sphère des pouvoirs de la Commission européenne du Danube, il n'en est pas moins vrai que la Commission européenne tient de ses actes fondamentaux le droit de fixer des règles pour la situation spéciale dont il s'agit, et que, notamment, elle a tout pouvoir pour introduire dans son Règlement de navigation et de police des dispositions relatives à cette question. C'est ce qui résulte de l'alinéa 2 de l'article 7 de l'Acte public du 2 novembre 1865, ainsi conçu: “Il est entendu que ce Règlement fait loi, non seulement en ce qui concerne la police fluviale, mais encore pour le jugement des contestations civiles naissant par suite de l'exercice de la navigation.”

Moreover, it is a fact which is amply proved by the annual reports made to the European Commission by its Consulting Engineer, that the works protected in this manner include also works carried out between Galatz and Braila, and more particularly at the place known under the name of Ziglina.

Jurisdictional powers are those which are dealt with in the Regulations under Heading VIII (Contraventions). Chapter I (Assessment of fines) refers in the first two paragraphs, which deal with contraventions of the river police regulations (Article 168) and with pilotage (Article 174), to articles which expressly relate to the Galatz-Braila sector (Articles 35 and 101). There is nothing to justify the view that the provisions relating to the application of fines (Articles 186 to 193) do not apply as regards Articles 168 and 174. Jurisdictional powers therefore exist, at all events in some cases, in the Galatz-Braila sector. The tenor of Articles 168 and 174 would not justify the

¹ [Translation by the Registry.]

“But if the setting up of a special tribunal to deal with the matter may have been regarded as a measure *ultra vires* of the European Commission of the Danube, it is none the less true that that Commission draws from its very constitution the right to make rules for the special situation in question, and in particular has full powers to insert provisions dealing with that question in its Navigation and Police Regulations. This appears from Article 7, paragraph 2, of the Public Act of November 2nd, 1865, which was as follows: “These Regulations have force of law not only as regards the river police but also for the judgment of civil disputes arising out of navigation.”

conclusion that the other parts of Heading VIII do not apply, generally speaking, to all the material clauses of the Regulations which may be recognized as applicable to the Galatz-Braila sector.

The report of the Special Committee as to the pre-war exercise of jurisdiction by the European Commission in the Galatz-Braila sector states that amongst the cases in question there are many which concern contraventions of clauses not specially declared applicable to that sector. This statement supports the conclusion that in practice these clauses have been understood as applying to the sector. That this is really the case is confirmed by a letter under date of June 18th, 1881, from the Roumanian delegate to the Roumanian Minister for Foreign Affairs. This letter says that, in fact, the Regulations of the Commission were, from the time of its creation, in great part applied to Braila, this port being considered as the terminal point of the course of sea-going navigation. It is further said that, in fact, the ships extend their course as far as Braila because it is there where they take in their cargo, and that it has not been possible to elaborate a special regulation for this sector without prejudice to navigation. This is, the letter continues, the reason why, when drawing up the regulations for navigation between Galatz and the Iron Gates, the proposal was made and accepted by all to confirm a situation of fact considered as necessary.

Lastly, it should be observed that in the heading of the list of convictions made by the authorities responsible for enforcement of the navigation regulations and regularly annexed to the annual statistics presented to the Commission by its Secretariat, the phrase "between Braila and Sulina" has been substituted since 1904 for "between Galatz and Sulina".

*

It results from the above comparison of the powers which the European Commission undoubtedly possesses below Galatz with those which it exercised on the Galatz-Braila sector, that the latter cover practically the same ground. This coincidence is easily explained if one considers it in the light of the legal

situation which has been stated above and which shows that, from the beginning, the different powers of the European Commission have been treated as forming a necessary unity, and that, more especially, the jurisdictional powers were considered as a corollary to the technical powers, which were, in fact, to be protected by sanctions. If such was the state of things on the Danube below Galatz, it seems quite natural that the European Commission should also act along the same lines in the Galatz-Braila sector, although both the Commission and Roumania avoided defining once and for all the legal situation there applicable. Under these conditions, an identical state of things on the whole maritime Danube ensued, as found by the Special Committee and as also appears from the comparison which the Court has just made.

It may be added in this connection that already under the Public Act of 1865, which was ratified by Turkey, the territorial sovereign, the European Commission had enacted different regulations, relating to navigation dues and to pilotage, and applying to the navigation up to Braila, or Ibraila (as this place was formerly called). This was done in spite of the fact that, in the Public Act of 1865, Isaktcha was mentioned as the upstream limit of the jurisdiction of the European Commission.

It was never contended that this state of things was not binding upon Roumania when she became, in 1878, an independent Power and was admitted, as the territorial sovereign of a great part of the Lower Danube, to the European Commission. Moreover, the Additional Act of 1881, to which Roumania was a Party, confirmed, by its Article 9, those provisions of the Public Act which were not expressly modified. The Regulations, made with the collaboration and consent of Roumania, in pursuance of the Additional Act, also contain clauses relating to Braila, though the Treaty of Berlin and the Additional Act mention Galatz as the upstream limit of the Commission's jurisdiction. It is, therefore, evident that the situation on which the Court relied in the above comparison is in no way exceptional or new, but is, in its essential features, the outcome of the situation created by the Acts of 1865 and 1881.

Under these conditions, no decisive weight can be attached to the fact that the Regulations of 1911, in particular its Articles 1 and 3, and the Instructions of 1913, contain several clauses which seem to indicate that the powers of the Commission are to be exercised only below Galatz. These manifest and regrettable inconsistencies cannot suffice to overrule the conclusions at which the Court has arrived, both on the ground of the findings of fact of the Special Committee and in consideration of the whole system of the international acts applicable before the war to the maritime Danube.

This conclusion is that before the war the European Commission exercised the same powers between Galatz and Braila as below Galatz, and therefore—in view of the construction placed by the Court upon Article 6 of the Definitive Statute—that under the law at present in force the Commission has the same powers on these two sectors of the maritime Danube.

* * *

II.

The first question includes as a final subdivision the following point: "How far upstream do they [these powers] extend?" According to the context, the word "they" may refer, either solely to the sentence immediately before, which speaks of "powers of any kind" which may be possessed by the European Commission of the Danube in the Galatz-Braila sector, or also to the first sentence of question No. 1, which envisages the possibility that the European Commission of the Danube has "the same powers" on the whole of the maritime Danube. In the first alternative, the question of the upstream limit would no longer arise, since the Court has arrived at the conclusion that the European Commission of the Danube possesses the same powers everywhere.

Nevertheless, the Court considers that the question of the upstream limit must be dealt with in any case. What is required is to fix the point where the powers of the European Commission, whatever they may be, terminate and are replaced by those of the International Commission. A difference of opinion has indeed arisen between Roumania and the other three Powers in regard to this point. Moreover, it is hardly conceivable that the Galatz-Braila sector, in regard to which there have been disputes as to the powers of the European Commission, does not coincide as regards its upstream limit with the maritime Danube, over which the European Commission's authority extends under Articles 6 and 9 of the Definitive Statute. This being so, the Court considers that it must deal with the upstream limit of the powers of the European Commission.

The point of demarcation between the régime of the maritime Danube and that of the fluvial Danube being indisputably Braila, the only question to be treated is whether or not Braila is included in the maritime Danube and consequently comes within the jurisdiction of the European Commission in so far as a port such as Braila is under the control of the European Commission and not under that of the territorial authorities. The latter point is not dealt with at this stage; it is considered under question No. 2.

Since at Braila two parts of the river subject to two different régimes and the jurisdiction of two different Commissions meet, it might be thought that in the sector of the river enclosed within the limits of the port, the two régimes would overlap, that is to say, that there would be an arrangement whereby every vessel would, until it had terminated its voyage in the port of Braila, remain subject to that régime under which it began its voyage. But this seems to be precluded by the terms of Article 6 which, like the Treaty of Versailles (Article 347), speaks of "the point where the authority of the International Commission commences". Now, "point" can only mean a topographical *point* or rather a topographical *line*, and not a more or less extensive zone of concurrent jurisdiction.

If the upstream limit is formed by a line across the river, this line must be placed immediately above the port of Braila. The reasons for this are as follows:

It is certain that Braila is a port of the maritime Danube in the technical and commercial sense, because sea-going vessels use this port.

It is also certain, as has been shown above, that the European Commission of the Danube possesses and has possessed since 1865, at all events some powers upon the Galatz-Braila sector, that is to say powers exercised in favour of sea-going shipping. Indeed, commercial shipping loses its whole object if it cannot reach economic centres; so that sea-going shipping on the Danube must be able to reach the terminal port of such shipping. This view is especially indicated because, before 1921, the fluvial Danube was not effectively internationalized, so that the régime of freedom of navigation, as far as the (*jusque dans le*) port of Braila, could before the war only be assumed by the European Commission of the Danube, in so far as that duty rested with an international organization.

The principle that freedom of navigation upon a river must include navigation as far as (*jusque dans*) the zone to be reached, was made clear by the Act of the Rhine (1831) which lays down that freedom of navigation *jusqu'à la mer* (as far as the sea), as enunciated by the Treaty of Peace of Paris of May 30th, 1814, and the articles concerning the navigation of the Rhine annexed to the Final Act of the Congress of Vienna (1815), means *jusque dans la pleine mer* (as far as the sea and into the high sea) *et vice versa*. Accordingly, the Danube Navigation Act of 1857 lays down (Article 5) that the right of navigation from the high seas to each one of the ports of the Danube and from each of these ports to the high seas is free for the ships of all nations, and that, consequently, these ships may touch at all ports (*en conséquence, lesdits bâtiments pourront toucher à tous les ports...*).

The Regulations of Navigation and Police for the sector from Braila to the Iron Gates attached to the Treaty of London of 1883—Regulations which, it is true, have not been put into force—are nevertheless of some interest, quite apart from the weight which may be attached to this Treaty, as showing the intention of the signatories of the Treaty of London, and more especially the point of view held at that

time by the majority of the European Commission (the Roumanian representative voting against) by whom the regulations were drawn up. Article 103 of these Regulations provides, for the purpose of river supervision on the Danube between the Iron Gates and Braila, for four sectors, the fourth of which extends from Calarash-Silistria down to but excluding Braila. The alterations suggested by Roumania did not refer to this point. It is thus clear that Article 1 of the Treaty of London was construed by its authors as extending the jurisdiction of the European Commission to Braila inclusively. It seems therefore plain that the situation of fact which, in spite of the disputes in respect of the situation at law, had arisen on the sector in question, could not fail to take into account this precise locality, the port of which had already before 1883 been the terminal point for the compulsory pilotage organization of the European Commission. This point of view seems to be distinctly corroborated by the fact that Article 35 of the Regulations of 1911 deals with ships which cross the sector of the port of Braila. Moreover, several decisions of the European Commission included in Annex B of the Report of the Special Committee, refer clearly to the port of Braila itself (1888: No. 2643; 1889: Nos. 1899 and 2062; 1891: No. 370; 1892: Nos. 796, 1530; 1894: No. 2089; 1895: No. 1720; 1896: Nos. 1183, 1250; 1904: No. 637; 1907: No. 213; 1908: Nos. 260, 40; 1909: No. 247).

The fixing of an upstream limit to the powers of the European Commission in such a way as to include the port of Braila within the maritime Danube was also confirmed by the terms of Article 9 of the Definitive Statute, which provides that the powers of the International Commission extend over the Danube between Ulm and Braila. This wording is more in keeping with a construction which excludes Braila from the fluvial Danube than with one which includes this port in the fluvial régime.

This construction of Article 9 is confirmed by the discussions which took place in 1922 in the International Commission regarding the "Draft Navigation and Police Regulations applicable to the part of the Danube between Ulm and Braila" and to its internationalized system.

It appears indeed from these discussions that in the opinion of the International Commission its authority does not extend beyond the upstream side of Braila. And the Roumanian delegate, far from disputing this view, was most insistent that the downstream limit of its authority should be fixed at a point very considerably above that which the Commission regarded as the upper limit of the port of Braila. In accepting the Commission's decision, moreover, he declared that his Government could never agree to the extension of the Commission's authority as far as the port of Braila inclusive. It is true that the Roumanian delegate, in making this declaration, started from the point of view that the ports and the corresponding sectors of the rivers were outside the jurisdiction of either Commission, but it can be inferred at any rate from the foregoing observation that the International Commission as well as Roumania herself did not consider the port of Braila as coming within the competence of the International Commission.

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B.

QUESTION No. 2.

The second question put to the Court under the Resolution of the Council of the League of Nations of December 9th, 1926, runs as follows:

"Should the European Commission of the Danube possess either the same powers on the Galatz-Braila sector as on the sector below Galatz, or certain powers, do these powers extend over one or more zones, territorially defined and corresponding to all or part of the navigable channel, to the exclusion of other zones territorially defined and corresponding to harbour zones subject to the exclusive competence of the Roumanian authorities? If so, according to what criteria shall the line of demarcation be fixed as between territorial zones placed under the competence of the European Commission and zones placed under the competence of the Roumanian authorities? If the contrary is the case, on what non-territorial basis is the exact dividing line between the respective competence of the European Commission of the Danube and of the Roumanian authorities to be fixed?"

The Court, having arrived at the conclusion that the European Commission has the same powers between Galatz and Braila as between Galatz and Sulina, obviously now has to deal with this question.

In the first place it is necessary to elucidate the exact scope of the question. Owing to the close inter-relation between questions 1 and 2, the conclusion must be drawn that the line of demarcation between the different zones which correspond either to the whole or a part of the navigable channel, or to harbour zones which are subject to the exclusive jurisdiction of the Roumanian authorities, and the criterion for the delimitation of which has to be fixed by the Court, only applies to the sector of the maritime Danube which extends from Galatz to Braila. It is not, therefore, the jurisdiction of the European Commission of the Danube, in relation to the ports in general, which is the subject of the pending question, although the Court is bound to take note of considerations which might go beyond the limits of the special conditions of the Galatz-Braila sector.

This having been established, it should be remembered that, as results both from the documents submitted to the Court and from the maps which were put in, the only ports in the sector in question are Galatz and Braila. The question of the line of demarcation of powers as between the European Commission and the Roumanian authorities is therefore dealt with only in relation to these two ports.

It is also to be observed that neither in the question submitted to the Court nor in the written or oral argument, have the four Governments contended that these two ports came under different régimes: their arguments differed only in so far as the nature and the conditions of the régime which applied to these ports were concerned.

Since the Definitive Statute, in so far as it applies to the maritime Danube, does not contain any specific provisions relating to ports, the question of the jurisdiction of the European Commission in relation to ports can only be considered and dealt with as a special application of the principles embodied in Articles 5 and 6 of the Statute.

The terms in which the question has been put necessarily imply that the Roumanian authorities possess some powers

in relation to the ports in question. The subject of the controversy is the criterion, territorial or otherwise, for the line of separation between the two jurisdictions as regards ports. This point of view is confirmed by the report of the Special Committee as well as by the Memorials of the British and French Governments, which acquiesce as far as concerns the ports of Galatz and Braila, in the Roumanian authorities' exercising jurisdictional powers, which are not necessarily deducible from international instruments governing the régime on the maritime Danube. The British Government, it is true, has formulated a reservation as to whether the exercise of those powers was in conformity with the above-mentioned instruments; but it has declared that, without prejudice to the question of principle, it did not desire to insist upon any modifications being applied to a long established practice. That the pre-war situation of fact must be considered as maintained, even in so far as concerns the ports of Galatz and Braila, follows from the terms of Article 6 of the Definitive Statute as interpreted by the Court.

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The question submitted to the Court contemplates in the first place the possibility that the powers of the European Commission are to be considered as being limited to a territorial zone corresponding to the whole or to a part of the navigable channel, to the exclusion of one or more territorial zones corresponding to harbour zones and subject to the exclusive competence of the Roumanian authorities. This does not mean that these last zones must coincide with the territorial limits of the port, whether such limits are fixed by administrative or legal dispositions or simply result from the situation of fact. There may be considerations which lead to adopting very extensive territorial limits for a port which could not in any way serve as a limit for the powers of the Commission.

The Roumanian Government upholds the view that the limit between the competence of the European Commission and that of the Roumanian authorities is of a territorial nature and is formed by transverse lines drawn across the river with their points of departure at the upstream and downstream limits of the port, thus creating sectors which would be wholly subject to the territorial authorities alone.

There is no text in force upon which this method can be founded, and it has not even been contended that such a system has been recognized in connection with other international rivers. It is true that this method was embodied, although with an express reserve in favour of navigation in transit, in Article 105 of the Draft Regulations for the Danube between the Iron Gates and Braila annexed to the Treaty of London, but these Regulations were never put into execution, and in the Definitive Statute it was not adopted.

Such a method of providing for sectors of the channel corresponding to the ports not only cannot be founded on any relevant texts, but is even contrary to at least one of the provisions of the Regulations of 1911. Article 35, for example, contains in particular a provision relating to ships "when they pass through the sectors of the ports of Braila, Galatz", etc. As has already been indicated above, the European Commission is entrusted with the task of ensuring free navigation, that is to say, the free movement of vessels on the maritime Danube. From this point of view it would be inconceivable that the territorial jurisdiction of the European Commission should be interrupted by port sectors exclusively subject to the territorial authorities. In order to permit of the river being so dismembered, a special provision to that effect would have to exist. Now Article 3 of the Definitive Statute on the contrary clearly lays down the principle that the two parts of the Danube are wholly subject, that is to say over the whole course of both sectors, to the authority of one or other of the Commissions.

The facts recorded in the report of the Special Committee afford no support to the contention of the Roumanian Government. It is also to be noted that, amongst the sentences of the European Commission mentioned in the Annex to the Report of the Special Committee, there are no less than 36 cases which, judging from the terms used by the Committee, relate to occurrences "in the port" (*dans le port*) or "in the roads" (*en rade*) of Galatz or Braila. In five additional cases "Galatz" or "Braila" are referred to, without further specification.

Another alternative would be to distinguish between the river surface and the land surface, the European Commission being solely competent on the former, the territorial authorities

only on the latter. But this method cannot be accepted. Not only has it not been put forward by any of the Governments concerned, but it would be incompatible on the one hand with the undisputed exercise of certain jurisdictional powers by the Roumanian authorities over ships whilst in port, and on the other hand with the fact that the powers of the European Commission may extend to the banks themselves, for example, for carrying out technical works as well as for controlling towage and deposit of ballast.

Nor is there any foundation, either in the instruments in force or in the practice as shown by the Special Committee, for adopting any other territorial delimitation as to the respective powers of the European Commission and those of the territorial authorities in the ports. No such line of demarcation has been suggested by any of the Governments concerned, and the Court has not been furnished with information which could possibly justify the adoption of such a line.

Indeed all information with which the Court has been furnished as to the practice, as well as the instruments defining the object and the powers of the European Commission, lead to the conclusion that, as regards the ports in question, the dividing line between the respective competences of the European Commission and the Roumanian authorities is of a non-territorial nature.

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The principle of territorially defined zones having been discarded, the Court will have to ascertain what non-territorial criterion is to be applied in distinguishing between the respective jurisdictions of the European Commission and the Roumanian authorities. In this connection the following should be observed: Although the European Commission exercises its functions "in complete independence of the territorial authorities" and although it has independent means of action and prerogatives and privileges which are generally withheld from international organizations, it is not an organization possessing exclusive territorial sovereignty. Roumania exercises power as territorial sovereign over the maritime

Danube in all respects not incompatible with the powers possessed by the European Commission under the Definitive Statute. When in one and the same area there are two independent authorities, the only way in which it is possible to differentiate between their respective jurisdictions is by defining the functions allotted to them. As the European Commission is not a State, but an international institution with a special purpose, it only has the functions bestowed upon it by the Definitive Statute with a view to the fulfilment of that purpose, but it has power to exercise these functions to their full extent, in so far as the Statute does not impose restrictions upon it.

As has already been stated, the Statute, neither directly nor indirectly, affords any criterion for differentiating between the respective jurisdictions in the ports. The silence of these instruments in regard to the ports—apart from the special provisions relating to the port of Sulina and other special provisions—does not however constitute proof that the ports are not also within the jurisdiction of the European Commission.

The international instruments, from the Treaty of Paris onwards, do not specially relate to the navigable channel or the ports; they deal with the navigation of the Danube, of which both the channel and the ports are essential features. That is why the Public Act of 1865 and the regulations based thereon, as also subsequent treaties, have laid down certain rules for individual ports, and for the same reasons also the Definitive Statute has, as regards the fluvial Danube, laid down principles concerning the régime of ports.

The Definitive Statute, in conformity with the principles already established by the Treaty of Paris of 1856, declares, in Article 3, that navigation is to be free and that all flags are to receive equal treatment.

The conception of navigation includes, primarily and essentially, the conception of the movement of vessels with a view to the accomplishment of voyages. It is obvious that the object of the Treaty of Paris, and of all the instruments subsequent to it, has been to assure freedom of navigation in this sense, and in the three following respects: (1) improvement of the

technical conditions of navigation by carrying out works in the river; (2) upkeep of the navigable channel and assurance of the safety of shipping by policing the river; (3) prohibition of the collection of dues based solely on the fact of navigation. Freedom of navigation, regarding navigation as the movement of vessels, must be assured by the European Commission on the whole river, including the portions of the river in the neighbourhood of ports or which actually constitute a port. That this is so appears both from the provisions of the Regulations of 1911 (Articles 35, 80, 99 and 100) which expressly refer to sectors of the river corresponding to ports, and from the thirty-six sentences already mentioned which the European Commission has pronounced in cases which have arisen in the ports of Galatz and Braila. It should also be pointed out that the Navigation Regulations of 1911 (Article 4), as also those which preceded them, dating from 1881 (Article 86), adopt the point of view that the voyage of a vessel only ends when it takes its moorings in a port.

The freedom of navigation which it is the duty of the European Commission to assure therefore covers not only shipping passing through a sector of the river corresponding to a port, but also shipping arriving in or leaving a port. This point of view, which is not contrary to any of the facts ascertained by the Special Committee, is the only one in conformity with the principle of freedom of navigation as understood in the instruments relating to the maritime Danube. As has already been stated when considering the upstream limit of the powers of the European Commission, freedom of navigation is incomplete unless shipping can actually reach the ports under the same conditions. The Commission's powers therefore extend to navigation into and out of the port, as well as through the port.

One criterion which emerges from the foregoing is the following: In the ports of Galatz and Braila, the European Commission alone has jurisdiction over navigation, that conception being taken to mean any movement of vessels forming part of their voyage.

The second idea which the conception of navigation comprises is that of contact with the economic organization and with the means of communication of the country reached by navigation. Ports are precisely the means of establishing such contact. In this connection a distinction must be drawn between, on the one hand, everything connected with (1) vessels situated in ports, such as the conditions under which they must take or shift their moorings, their position alongside quays, their admission to inner docks, or the manœuvres necessary for this purpose, and (2), on the other hand, the loading or unloading of ships, the warehousing of goods, access to railways, etc.

As regards the first category of conditions, examination of the Navigation Regulations would rather lead to the conclusion that the authority of the European Commission also includes the policing of the port, that is to say, in so far as regulations concerning vessels in harbour are concerned. As regards the ports of Sulina and Toultscha, and particularly the former, the Regulations of 1911, as also the preceding Regulations and certain of the notices to navigators issued from time to time by virtue of the powers conferred upon the Commission, contain provisions to this effect. But the investigations of the Special Committee show that the Roumanian authorities have exercised control over the ports of Galatz and Braila as regards vessels moored in these ports.

As regards installations and the port services for loading and unloading, etc., as such, it is to be observed that the international instruments relating to the maritime Danube and the Regulations issued in pursuance of them, contain no provisions in this respect. Nor has the Special Committee recorded the exercise of any powers in this sphere by the European Commission; on the contrary, it appears that it is generally agreed that the regulation of these services, and jurisdiction in relation to them, belong to the Roumanian authorities.

Nevertheless, this situation of fact cannot be wholly unconnected with the international régime of the Danube and cannot leave open the possibility of conditions establishing

themselves which are at variance with the principles laid down by the international instruments. Here the second principle already established by the Treaty of Paris, and once more enunciated by the Definitive Statute, namely the equal treatment of all flags, comes into play.

Roumania herself, in her Counter-Memorial, admits that the ports of Galatz and Braila in actual fact enjoy in its entirety the régime applicable to the ports of the fluvial Danube. Now this régime, which is defined by Article 20 of the Statute, is simply the application of the principle of freedom of navigation and of equal treatment of all flags, which has been recognized for the Danube since 1856. Since, according to the terms of Article 3 of the Statute, it rests with the European Commission to assure this freedom and equality upon the maritime Danube, that organization must necessarily have power to intervene, should the territorial authorities adopt measures contrary to these principles. Since neither the Report of the Special Committee nor any document or declaration before the Court mentions facts relating to the exercise of this right of intervention, the Court is unable to state what the situation on this point was in fact before the war. The absence, however, of findings of pertinent facts of record in respect to this specific point does not suffice to prove that such a right, which is a necessary corollary to the duties of the European Commission, does not exist. The criterion for the delimitation of the powers of the European Commission and of the territorial authorities in the ports of Galatz and Braila with regard to vessels moored or otherwise at rest in these ports, and with regard to the use by vessels of the installations and services of these ports, is therefore the following: the powers of regulation and jurisdiction belong to the territorial authorities; the right of supervision, with a view to ensuring freedom of navigation and equal treatment of all flags, belongs to the European Commission.

This situation is in no way affected by the fact that Roumania has adhered to the Convention and Statute concerning the régime of navigable waterways of international concern of April 20th, 1921. Article 9 of that Statute is, broadly speaking, identical with the special régime for the

Danube. Furthermore, Roumania has only adhered to the Convention and Statute in so far as the provisions of the Barcelona Statute are not in conflict with the principles of the Definitive Statute.

The Court must content itself with the establishment of these two criteria, which are evolved on the one hand from the law which emerges from international instruments, and, on the other hand, from the *de facto* situation ascertained in regard to the ports of Galatz and Braila.

It is impossible further to define and develop these criteria, in the absence of texts specially relating to the ports in question, and on the basis of somewhat scanty statements of fact which do not go into details. It is moreover in the nature of things that a delimitation of powers, in a matter such as that under consideration, can only be adequately effected on the basis of special regulations taking into account the variety of special conditions and special circumstances, which are not necessarily constant but may from time to time require readjustment.

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C.

QUESTION No. 3.

The Court having arrived, as regards the first question, at the conclusion that the European Commission possesses in the Galatz-Braila sector the same powers as on the other parts of the maritime Danube, there is no need to consider the third question, which has only been submitted subject to the answer given in regard to the first question.

* * *

FOR THESE REASONS,

The Court,

by nine votes to one,

is of opinion

(1) (a) that under the law at present in force the European Commission of the Danube has the same powers on the maritime sector of the Danube from Galatz to Braila as on the sector below Galatz;

(b) that these powers extend up to the port of Braila, this port being included;

(2) (a) that the powers of the European Commission of the Danube extend over the whole of the maritime Danube, and are not excluded from zones territorially defined and corresponding to harbour zones;

(b) that the dividing line between the respective competences of the European Commission of the Danube and of the Roumanian authorities in the ports of Galatz and Braila is to be fixed according to the criteria

(i) of navigation, in the sense of the movement of ships as part of their voyage, the European Commission of the Danube being also competent in regard to navigation in ports, whether the ships are passing through or coming to or leaving their moorings, as far as navigation so understood is concerned;

and (ii) of the obligation to ensure freedom of navigation and equal treatment of all flags, the European Commission of the Danube being competent, also as concerns the ports, to exercise the supervision inherent in this obligation;

(3) that it is not necessary to give an answer to the question put under No. 3.

Done in English and French, the English text being authoritative, at the Peace Palace, The Hague, this eighth day of December, nineteen hundred and twenty-seven, in two copies, one of which is to be placed in the archives of the Court, and the other to be forwarded to the Council of the League of Nations.

(Signed) MAX HUBER,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

MM. Nyholm and Moore, Judges, while agreeing in the conclusions arrived at by the Court, desired to add certain individual remarks, the text of which follows hereafter.

M. Negulesco, Deputy-Judge, declaring himself unable to concur in the Court's opinion, and availing himself of the right conferred on him by Article 71 of the Rules of Court, delivered the separate opinion hereafter reproduced.

(Initialled) M. H.

(Initialled) Å. H.
